

3.—(1) Where, when the contribution was made, the trade was carried on or to be carried on by a tenant of land in which the contributor had an interest, the annual allowance for any year of assessment shall be made to the person who, at the end of that year, is entitled to the contributor's interest in the land, and the provisions of this Act defining, for the purposes of Part I thereof, the expression "the relevant interest" shall, with the necessary modifications, apply in relation to a contribution made for the purposes of a trade carried on or to be carried on by a tenant of land as they apply in relation to expenditure incurred on the construction of a building or structure.

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(2) Subsection (2) of section two of this Act (which relates to the effect of sales on the amount of annual allowances) shall not apply in relation to annual allowances to be made in respect of contributions.

4. The two last preceding paragraphs shall not apply where the trade is husbandry in the United Kingdom or the occupation of woodlands in the United Kingdom, and in lieu thereof the provisions of subsection (4) of section thirty-three of this Act (which relate to the effect of transfers of land) shall apply with any necessary modifications.

CHAPTER 33.

Town and Country Planning (Scotland) Act, 1945.

ARRANGEMENT OF SECTIONS.

PART I.

TOWN AND COUNTRY PLANNING.

Areas of extensive war damage : acquisition of land, and grants towards expenses of acquisition and clearing.

Section.

1. Designation of areas of extensive war damage, and of land needed for re-location of population and industries of such areas.
2. Power to purchase land for redevelopment of areas of extensive war damage, or needed for re-location of population and industries of such areas.
3. Power to purchase land for highways in connection with areas of extensive war damage, or with land needed for re-location.
4. Power to purchase for the public service, land designated under s. 1.
5. Grants towards loan charges in respect of acquisition and clearing of land for dealing with war damage.
6. Contributions of local planning authorities towards expenses of highway authorities under this Part, and grants in respect of such contributions.
7. General provisions as to grants under ss. 5 and 6.
8. Quinquennial review of financial effect of redevelopment.

Acquisition of land for certain planning purposes.

9. Power to purchase land for purposes relating to redevelopment of areas of bad lay-out and obsolete development.
10. Power to purchase land for certain planning purposes.
11. Obligation to purchase war-damaged land where development permission refused.

General provisions as to acquisition of land under Part I.

Section.

12. Power to authorise purchase by local planning authority for area where land is, in lieu of by another authority.
13. Modifications as to procedure and compensation for purchase in case of land held for the carrying on of statutory undertakings.
14. Provisions as to purchase and appropriation of open spaces, etc.
15. Validity and date of operation of orders, etc.
16. Recording of orders, etc., in register of sasines.
17. Incorporation of Lands Clauses Acts, etc., with modifications including modifications providing for expedited completion of purchases.

Powers in relation to land acquired or appropriated.

18. Disposal or appropriation by local planning authority of land held by them for purposes of this Part.
19. Power of local planning authority to carry out development of land held by them for purposes of this Part.
20. Power of local highway authority to construct new roads for purposes of this Part.
21. Authorisation of development on land acquired for purposes of this Part notwithstanding interference with servitudes, etc.
22. Power to extinguish highways over land acquired for purposes of this Part.
23. Extinguishment of private ways, servitudes, and rights as to apparatus, over or in land purchased for purposes of this Part.
24. Extinguishment of rights of way, and rights as to apparatus of statutory undertakers.
25. Extension and modification of powers and duties of statutory undertakers.
26. Relief of statutory undertakers from obligations rendered impracticable by exercise of powers of this Part.
27. Provisions as to churches and burial grounds.
28. Authorisation of use and development of open spaces, etc., notwithstanding restrictions.
29. Provisions as to displacements from land acquired for purposes of this Part.

Planning Provisions.

30. Duty of local planning authority to furnish information to the Secretary of State.
31. Powers of Secretary of State with respect to development carried out by interim development authorities and responsible authorities.
32. Power to suspend planning schemes and reimpose interim development control.
33. Statutory undertakers: interim development control.
34. Statutory undertakers: application for interim development permission.
35. Statutory undertakers: revocation of interim development permission.
36. Statutory undertakers: postponement of interim development applications.
37. Interim development orders: exclusion of permission in particular areas or particular cases.
38. Suspension of byelaws and other enactments: additional powers.
39. Establishment of joint committees for planning purposes.
40. Application to agricultural buildings of provisions of planning schemes as to buildings.
41. Designation of buildings of special architectural or historic interest.
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43. Appeals in respect of design or external appearance of buildings.

Section.

- 44. Extension as respects war period of protection for existing buildings and uses.
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COMPENSATION IN CONNECTION WITH ACQUISITION OF LAND FOR
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- 53. Assessment of compensation in connection with acquisition of land for public purposes by reference to 1939 prices.
- 54. Supplement to compensation in case of owner-occupiers.
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- 56. Supplemental provisions relating to the two preceding sections.
- 57. Ascertainment of compensation for purchase of land valued under the War Damage Act, 1943.
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PART III.

GENERAL.

- 59. Regulations.
- 60. Expenses of, and borrowing by, local authorities.
- 61. Powers of official arbiter on references to him.
- 62. Interpretation.
- 63. Short title and extent.

SCHEDULES :

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Second Schedule.—Procedure for authorising compulsory purchase.

Third Schedule.—Procedure for authorising compulsory purchase of statutory undertaker's land.

Fourth Schedule.—Assessment of compensation to statutory undertakers.

Fifth Schedule.—Modifications of Lands Clauses Acts, Railways Clauses Consolidation (Scotland) Act, 1845, and Acquisition of Land (Assessment of Compensation) Act, 1919, for purposes of Part I.

Sixth Schedule.—Procedure for completion of compulsory purchase under orders providing for expedited completion.

Seventh Schedule.—Application of the rule as to assessment of compensation in certain special cases.

Eighth Schedule.—Ascertainment of compensation for purchase of land valued under the War Damage Act, 1943.

An Act to make provision with respect to Scotland for the acquisition and development of land for planning purposes; for amending the law relating to town and country planning; for assessing by reference to 1939 prices compensation payable in connection with the acquisition of land for public purposes, and as to the rate of interest thereon; and for purposes connected with the matters aforesaid. [15th June 1945.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I.

TOWN AND COUNTRY PLANNING.

Areas of extensive war damage: acquisition of land, and grants towards expenses of acquisition and clearing.

Designation of areas of extensive war damage, and of land needed for re-location of population and industries of such areas.

1.—(1) Where the Secretary of State is satisfied that it is requisite, for the purpose of dealing satisfactorily with extensive war damage in the area of a local planning authority, that a part or parts of their area, consisting of land shown to his satisfaction to have sustained war damage or of such land together with other land contiguous or adjacent thereto, should be laid out afresh and redeveloped as a whole, an order declaring all or any of the land in such a part of their area to be land subject to compulsory purchase for dealing with war damage may be made by the Secretary of State if an application in that behalf is made to him by the authority before the expiration of five years from such date as the Secretary of State may by order appoint as being the date when the making of such applications has become practicable.

A part of the area of a local planning authority as to which the Secretary of State is satisfied as aforesaid is in this Act referred to as an "area of extensive war damage".

(2) Where the Secretary of State is satisfied that land is or will be required for the purpose of providing for re-location of population or industry, or for replacement of open space, in the course of the redevelopment of a part of the area of a local planning authority being an area of extensive war damage, he may, if an application in that behalf is made to him by the authority before the expiration of five years from the date appointed under the preceding subsection, make an order declaring any land which ought in his opinion to be

made available for that purpose to be land subject to compulsory purchase for that purpose.

In this Act the expression "re-location of population or industry" means, in relation to an area of extensive war damage, rendering available elsewhere than in that area, whether in an existing community or in a community to be newly established, accommodation for residential purposes or for the carrying on of business or other activities, together with all appropriate public services, facilities for public worship, recreation and amenity, and other requirements, being accommodation to be rendered available for persons or undertakings who are living or carrying on business or other activities in that area or who were doing so but by reason of war circumstances are no longer for the time being doing so, and whose continued or resumed location in that area would be inconsistent with the proper planning thereof; and the expression "replacement of open space" means, in relation to an area of extensive war damage, rendering land available for use as an open space or otherwise in an undeveloped state in substitution for land in that area which is so used.

PART I.
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(3) Where it appears to the Secretary of State that, having regard to all the circumstances, a local planning authority will, at some future date falling not earlier than two years after the date appointed under subsection (1) of this section, have had sufficient time for the submission of applications for orders under subsection (1) of this section, he may notify the local planning authority accordingly, and if he so notifies them, he shall not be required to consider any such application made by them after that date:

Provided that before the Secretary of State gives a notification under this subsection, he shall inform the local planning authority of his intention so to do and afford them an opportunity of appearing before and being heard by a person appointed by him for the purpose.

(4) Where a local planning authority have taken into consideration for the purposes of this section the question of the laying out afresh and redevelopment as a whole of a part of their area, or the question of providing in any locality for re-location of population or industry or for replacement of open space, they shall publish in one or more newspapers circulating in their area a notice stating that they are considering the said question and describing in general terms the situation of the part of their area or the locality, and shall not make an application for an order under this section as respects that part of their area or that locality, as the case may be, before the expiration of two months from the date on which a notice has been published or first published in relation thereto in pursuance of this subsection.

PART I.
—cont.

(5) An application for an order under this section shall designate the land to which the application relates by reference to a map or maps annexed thereto, either with or without descriptive matter (which, in the case of any discrepancy with the map or maps, shall prevail except in so far as may be otherwise provided by the application), and subject as aforesaid shall be in such form as may be prescribed.

(6) An application for an order under this section shall be accompanied by such statement, illustrated by such map or maps, as the authority consider requisite for indicating the manner in which it is intended that the land in the area of extensive war damage, or the land as to which they seek an order declaring it to be subject to compulsory purchase for providing for re-location of population or industry, or for replacement of open space, in the course of the redevelopment of such an area, should be laid out as respects its internal arrangement and in relation to the existing or intended lay-out of the surrounding locality, and the manner in which it is intended that such land should be used whether for purposes requiring the carrying out of development or otherwise.

(7) If the Secretary of State is satisfied that the particulars appearing from the application and the statement are adequate for enabling the expediency of the making of an order to be properly considered, he shall notify the authority that he is so satisfied and thereupon they shall—

(a) publish by Gazette and local advertisement a notice in the prescribed form describing the land to which the application relates, stating that an application under this section has been submitted to the Secretary of State in relation thereto and is about to be considered by him, naming a place where a copy of the application and of the map or maps and any descriptive matter annexed thereto, and of the statement and map or maps illustrating it submitted to him, may be seen at all reasonable hours, and specifying the time (not being less than twenty-eight days from the first local advertisement) within which, and the manner in which, objections to the application may be made; and

(b) serve a like notice on the persons appearing from the valuation roll to have an interest in any of the land to which the application relates and on such other persons as the Secretary of State may specify whether individually or as members of a class of persons;

and the provisions of the First Schedule to this Act shall have effect in relation to the application if any objection thereto is duly made.

(8) Subject to the provisions of the said Schedule in a case in which those provisions have effect in relation to the application, the Secretary of State may make an order in accordance therewith either without modification or with any modification except (unless all persons interested consent) a modification extending the order to any land not thereby designated.

(9) Where the Secretary of State proposes to make an order in accordance with an application with any modification, he shall furnish to the authority a statement of the proposed modification, and may, if he thinks fit, give to the authority directions requiring them to publish by Gazette and local advertisement, or to serve on such persons, or on all persons of such classes, as may be specified in the directions, or both to publish and serve as aforesaid, such notice of the proposed modification as may be therein specified.

(10) An order under this section shall designate the land to which it relates in the manner specified in subsection (5) of this section, and that subsection shall have effect accordingly with the substitution of references to the order for references to the application.

(11) As soon as may be after such an order has been made, the authority on whose application the order was made shall publish by Gazette and local advertisement a notice in the prescribed form stating that the order has been made and naming a place where a copy of the order and of the map or maps and any descriptive matter annexed thereto may be seen at all reasonable hours, and shall serve a like notice on any person who has duly made an objection to the application and at the time of making it or thereafter has sent to the authority a request in writing to serve him with the notice required by this subsection specifying an address for service, and on such other persons as the Secretary of State may specify whether individually or as members of a class of persons.

(12) Where an authority who have published a notice under subsection (4) of this section as a preliminary to an application made by them for an order under this section are required by virtue of subsection (7) (9) or (11) of this section to publish any notice, they shall serve a like notice on any owner of any of the land designated by the application who at any time after the publication of the notice under subsection (4) of this section has sent to the authority a request in writing that he should be so served specifying an address for service and giving the prescribed particulars of his interest.

(13) The authority on whose application an order has been made under this section may at any time, with the consent of the Secretary of State, direct that the order shall cease to have effect as to any particular land to which it relates.

PART I.
—cont.

(14) Where a direction is given by an authority under the last preceding subsection, the authority shall comply with any requirements of the Secretary of State as to the notification to other authorities or to such persons as the Secretary of State may specify whether individually or as members of a class of persons of the giving of the direction.

Power to purchase land for re-development of areas of extensive war damage, or needed for re-location of population and industries of such areas.

2.—(1) Subject to the provisions of this section, a local planning authority may be authorised to purchase compulsorily—

- (a) any land in their area as to which an order under section one of this Act is in force declaring the land to be subject to compulsory purchase for dealing with war damage, or
- (b) any land as to which an order under that section made on the application of that authority is in force declaring the land to be subject to compulsory purchase for providing for re-location of population or industry, or for replacement of open space, in the course of the redevelopment of an area of extensive war damage,

by an order made by the authority and submitted to the Secretary of State and confirmed by him in accordance with the provisions of Part I of the Second Schedule to this Act.

(2) Subject to the provisions of this section, a local planning authority may be authorised in manner aforesaid to purchase compulsorily any land in their area which is in an area of extensive war damage, notwithstanding that no order under section one of this Act is in force in relation thereto, if—

- (a) the Secretary of State is satisfied that its acquisition by the authority will be required for the purpose of dealing satisfactorily with the damage whatever may be decided as to the manner in which the land is to be laid out and used, and that the postponement of the acquisition thereof would be prejudicial to the public interest; and
- (b) the order authorising the purchase is submitted to the Secretary of State before the expiration of three years from the date appointed under subsection (1) of the preceding section.

(3) Without prejudice to any other power in that behalf, a local planning authority may, with the consent of the Secretary of State, acquire by agreement any land in their area which is in an area of extensive war damage, or any land as to which the Secretary of State is satisfied that it is required for providing for re-location of population or industry, or for replacement of open space, in the course of the redevelopment of a part of their area being an area of extensive war damage.

(4) An owner of any land as to which an order under section one of this Act or under subsection (2) of this section

has become operative may at any time after the expiration of five years from the date appointed under subsection (1) of the preceding section, if the acquisition under this Part of this Act of his interest in the land has not then become obligatory, give notice in writing to the local planning authority in whose area the land is situated that he desires to avail himself of the provisions of this subsection, and, where such a notice is given on any date, unless within three months from that date the acquisition of his interest has become obligatory or an authority on whom authorisation to purchase the land compulsorily has been or could be conferred under this Part of this Act has made to the owner an offer to purchase his interest at a price to be agreed, or in default of agreement at the like price, to be determined in the like manner, as if the purchase were compulsory, his interest shall be treated as excepted from the operation of any order under this section or under section four of this Act, whether made before or after the expiration of the said three months:

PART I.
—cont.

Provided that in a case in which the land in question either has not sustained war damage or has sustained such damage but has been rendered capable of reasonably beneficial use, the Secretary of State shall have power, on application being made to him within the said three months by an authority on whom authorisation to purchase the land compulsorily has been or could be conferred, and after affording to the authority and to the owner an opportunity of appearing before and being heard by a person appointed by the Secretary of State for the purpose, to direct that the notice shall not have effect, but without prejudice to the giving of a further notice after such interval as the Secretary of State may specify.

Any question arising under the proviso to this subsection whether land has been rendered capable of reasonably beneficial use shall be determined in accordance with the provisions of section eleven of this Act in that behalf.

(5) An authority shall comply with any requirements of the Secretary of State as to notification to other authorities concerned of the receipt by the authority of notices under the last preceding subsection.

- 3.—(1) Where the Secretary of State is satisfied that the construction or improvement of a road is needed—
- (a) outside an area of extensive war damage for the purpose of securing a satisfactory lay-out for land in that area, or of enabling any such land to be developed in the manner intended by the local planning authority, or
 - (b) for the purpose of providing proper means of access to land which is to be made available for providing
- Power to purchase land for highways in connection with areas of extensive war damage, or with land needed for re-location.

PART I.
—*cont.*

for re-location of population or industry, or for replacement of open space, in the course of the redevelopment of such an area,

a local highway authority may, subject to the provisions of subsections (3) and (5) of this section, be authorised, by an order made by the authority and submitted to the Secretary of State and confirmed by him in accordance with the provisions of Part I of the Second Schedule to this Act, to purchase compulsorily any land as to which the Secretary of State is satisfied that its acquisition by the authority is requisite for the construction or improvement of the road, or for carrying out the improvement, or controlling the development, of frontages to the road or of lands abutting thereon or adjacent thereto.

(2) Where the Minister of War Transport is satisfied that the construction or improvement of a road is needed to supersede a part of a trunk road, the supersession whereof appears to him to be expedient for any such purpose as is mentioned in paragraph (a) or (b) of the preceding subsection, he may, subject to the provisions of subsections (3) and (5) of this section, be authorised, by an order made by him in accordance with the provisions of Part II of the Second Schedule to this Act, to purchase compulsorily any land as to which he is satisfied that its acquisition by him is requisite for the construction or improvement of the road, or for carrying out the improvement, or controlling the development, of frontages to the road or of lands abutting thereon or adjacent thereto.

Expenses incurred by the Minister by virtue of this subsection shall be defrayed out of the Road Fund.

(3) Except in a case in which the Secretary of State or the Minister of War Transport, as the case may be, is satisfied that the land as to which the confirmation or making of an order under this section falls to be considered by him is required for the purposes of a project which was adequately set out in a statement submitted with an application for an order under section one of this Act which has been made, or for the purposes of a project which has been the subject of an inquiry for the purposes of subsection (3) of section one of the Trunk Roads Act, 1936, the notice required by paragraph 2 or paragraph 8, as the case may be, of the Second Schedule to this Act to be published shall be published not only as therein mentioned but also by being exhibited at such places in the locality to which the order relates as appear to the authority by whom it was submitted or to the Minister of War Transport, as the case may be, to be suitable for bringing it to the attention of all persons concerned.

(4) A local highway authority or the Minister of War Transport may enter into an agreement with an owner of any frontage to a road, or of any land abutting on or adjacent to

a road, imposing, so far as his interest in the land enables him to bind it, restrictions for controlling the development of the frontage or land; and any such agreement may, within three months after the date on which it was entered into, be recorded in the appropriate Register of Sasines, and on being so recorded shall be enforceable by the local highway authority or the Minister, as the case may be, against the said owner and against any person deriving title from him.

PART I.
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(5) Where there is submitted to the Secretary of State, or the Minister of War Transport proposes to make, an order under this section authorising the compulsory purchase of any land forming a frontage to, or abutting on or adjacent to, a road, and the Secretary of State or the Minister of War Transport, as the case may be, is satisfied as respects the whole or any part of the land—

- (a) that the purchase would be requisite only for the purpose of controlling development, and
- (b) that every owner has entered, or is willing to enter, into such agreement with the local highway authority or the Minister as is provided for by the last preceding subsection, or is bound by such an agreement, and that the agreement or proposed agreement is satisfactory for the said purpose,

the order shall not be confirmed or made so as to authorise the compulsory purchase of any part of the land as to which the Secretary of State or the Minister, as the case may be, is satisfied as aforesaid.

(6) A local highway authority may, with the consent of the Secretary of State, acquire by agreement any land which they could be authorised under this section to purchase compulsorily.

4.—(1) Where the purchase of any of the land as to which an order under section one of this Act is in force—

- (a) appears to the Minister of Works and the Secretary of State to be necessary for the public service, or
- (b) appears to the Postmaster-General and the Secretary of State to be necessary for the purpose of the Post Office,

Power to
purchase for
the public
service, land
designated
under s. 1.

the Minister and the Secretary of State, or the Postmaster-General and the Secretary of State, as the case may be, may by an order made by them in accordance with the provisions of Part II of the Second Schedule to this Act, provide that the power to purchase land for the public service conferred by section two of the Commissioners of Works Act, 1852, or the power to purchase land for the purpose of the Post Office

15 & 16 Vict.
c. 28.

PART I.

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conferred by subsection (1) of section forty-six of the Post Office Act, 1908, as the case may be, shall in the case of that land be exercisable as a power to purchase compulsorily.

(2) Subsection (2) of section forty-six of the Post Office Act, 1908 (which provides for obtaining the sanction of Parliament for a purchase of land under that section compulsorily) shall not have effect in relation to a purchase of land made thereunder compulsorily pursuant to an order under this section.

(3) References in this Act to a purchase of land under this Part of this Act include references to a purchase made under the said section forty-six compulsorily pursuant to an order under this Part of this Act, and references in this Act to a Minister include references to the Postmaster-General.

Grants
towards loan
charges in
respect of
acquisition
and clearing
of land
for dealing
with war
damage.

5.—(1) Subject to and in accordance with the provisions of this section and of section seven of this Act, the Secretary of State may undertake to make, and may make, out of moneys provided by Parliament grants to a local planning authority as respects any moneys borrowed by the authority to defray the cost—

- (a) of acquiring, in the exercise of powers conferred by this Part of this Act, any land in an area of extensive war damage, or of clearing, in the exercise of powers so conferred, any such land so acquired; or
- (b) of so acquiring or clearing any other land as to which the Secretary of State is satisfied that it is required for providing for re-location of population or industry, or for replacement of open space, in the course of the redevelopment of such an area,

of the following amounts, that is to say,—

- (i) as respects moneys borrowed to defray cost falling within paragraph (a) of this subsection, of amounts equal to the loan charges which the authority are liable to pay for the period of two years beginning with the date on which the moneys were borrowed, together with such further amounts as are provided for by the following provisions of this section:
- (ii) as respects moneys borrowed to defray cost falling within paragraph (b) of this subsection, of amounts equal to the loan charges which the authority are liable to pay for such period as is mentioned in the last preceding paragraph, together with further amounts equal to one half of the loan charges which the authority are liable to pay for the period of two years beginning with the end of that period.

(2) Where the preceding subsection has effect as respects moneys borrowed to defray cost falling within paragraph (a) of that subsection, and the Secretary of State is satisfied that

PART I.
—cont.

during any of the eight years next following the end of the period of two years mentioned in paragraph (i) of that subsection the area of extensive war damage remains, by reason of such damage, incapable to any extent of being brought into use for any substantial purpose and that the rendering of it capable of being brought into use has been for the time being impracticable or could have been accomplished only in a manner involving wasteful expense or bad planning, he may make out of moneys provided by Parliament further grants in respect of the loan charges which the authority are liable to pay for that year, of an amount bearing to the amount of those charges such proportion as appears to the Secretary of State to be appropriate having regard to the extent to which during that year that area remains as aforesaid incapable of being brought into use.

The Secretary of State, with the consent of the Treasury, may, after consultation with such associations of local authorities as appear to him to be concerned, make rules as to the matters to which regard is to be had in determining the extent to which during any year an area of extensive war damage remains as aforesaid incapable of being brought into use, and in determining the proportion appearing to the Secretary of State to be appropriate as aforesaid, and as to the application of the provisions of this subsection where those provisions have effect as respects more than one authority in relation to the same area of extensive war damage; and in particular rules made under this subsection may provide that in such circumstances as may be specified by the rules a development of land need not be treated as the bringing of the land into use for a substantial purpose, notwithstanding that apart from such provision it would fall to be so treated, so long as the local planning authority in question are prevented by such circumstances relating to the area as may be specified by the rules from obtaining a return from the development which is substantial having regard to the nature thereof.

(3) Where it appears to the Secretary of State and the Treasury that by reason of special circumstances affecting the redevelopment of an area of extensive war damage the time required for redeveloping the area must necessarily extend beyond the period over which under the last preceding subsection further grants may be made, that period shall be extended by five years.

(4) For the purposes of this section, the Secretary of State may, in such cases as he may with the consent of the Treasury determine, treat land appropriated by a local planning authority for any of the purposes of this Part of this Act as if it had been acquired by them for that purpose in the

PART I.
—*cont.*

exercise of powers conferred by this Part of this Act at such cost as the Secretary of State may with the consent of the Treasury determine, and as if the cost had been defrayed by the application, at the time of the appropriation, of moneys belonging to the authority.

(5) Where the cost of the acquisition by a local planning authority of any land is reduced by reason of the land being subject to a restriction on the development or use thereof imposed by or under any enactment, any payment made by the authority in connection with the restriction (whether by way of compensation or of contribution towards damage or expense incurred in consequence of the restriction), not exceeding the amount by which the said cost is reduced as aforesaid, shall be treated for the purposes of the preceding provisions of this section as if it had been part of the cost of the acquisition of the land, and as if it had been defrayed by the application, at the time of the acquisition, of moneys belonging to the authority.

(6) Where a local planning authority apply, or are treated as having applied, moneys belonging to the authority to defray any such cost as is mentioned in the preceding provisions of this section, those provisions shall have effect as if the said moneys had at the time of the application thereof been borrowed on such terms as to interest and rate of repayment as the Treasury may determine, and the authority were liable to pay loan charges in respect thereof accordingly.

Contributions
of local
planning
authorities
towards
expenses of
highway
authorities
under this
Part, and
grants in
respect of such
contributions.

6.—(1) A local planning authority may undertake to make, and may make, contributions towards the expense incurred by a local highway authority—

- (a) in acquiring land, the acquisition of which by them is authorised under section three of this Act by reference to the requirements of an area of extensive war damage, the whole or any part of which is comprised in the area of the local planning authority, or by reference to the requirements of land to be made available for the purpose of providing for re-location of population or industry or for replacement of open space in the course of the redevelopment of such an area of extensive war damage;
- (b) in carrying out any such construction or improvement as is mentioned in subsection (1) of section three of this Act by reference to such requirements as aforesaid; or
- (c) in carrying out the construction or improvement of any road in such an area of extensive war damage as aforesaid.

(2) A local planning authority may undertake to make, and may make, contributions, as respects any road as to which the Minister of War Transport is satisfied that the construction or improvement thereof is needed to supersede a part of a trunk road the supersession whereof appears to him, by reference to such requirements as are mentioned in paragraph (a) of the preceding subsection, to be expedient as mentioned in subsection (2) of section three of this Act, towards the expense incurred by the Minister—

- (a) in acquiring land for the construction or improvement of the road, or for carrying out the improvement, or controlling the development, of frontages to the road or of lands abutting thereon or adjacent thereto;
- (b) in carrying out the construction or improvement of the road or of any such frontages or lands.

Receipts of the Minister of War Transport under this subsection shall be paid into the Exchequer.

(3) Subject to the provisions of the next following section, the Secretary of State may undertake to make, and may make, out of moneys provided by Parliament grants to a local planning authority as respects any moneys borrowed by the authority—

- (a) to defray the cost of contributions made by them under subsection (1) of this section towards the expense of acquiring and clearing land the acquisition of which is authorised as mentioned in paragraph (a) of that subsection, or
- (b) where the authority is both the local planning authority and the local highway authority, to defray the cost of acquiring land as mentioned in the said paragraph (a) and clearing land so acquired, or
- (c) to defray the cost of contributions made by them under the last preceding subsection towards the expense incurred by the Minister of War Transport in acquiring land as mentioned in paragraph (a) of that subsection and clearing land so acquired,

of amounts equal to the loan charges which the local planning authority are liable to pay for the period of two years beginning with the date on which the moneys were borrowed.

(4) Subsection (6) of the last preceding section shall apply in relation to the last preceding subsection as it applies in relation to subsection (1) of that section.

7.—(1) It shall be a condition of the making of grants under either of the two last preceding sections—

- (a) that there shall have been submitted to the Secretary of State such information as to the proposals of the

General provisions as to grants under ss. 5 and 6.

PART I.
—cont.

local planning authority for the lay-out and re-development of the area of extensive war damage and of any such other land as is mentioned in paragraph (b) of subsection (1) of section five of this Act as the Secretary of State may require to enable a comparison to be made between the annual return to the authority from the carrying out of the re-development and the annual equivalent of the cost thereof; and

- (b) that the proposals have been approved by the Secretary of State with the consent of the Treasury as being likely to result in an annual return and annual equivalent such as are mentioned in the preceding paragraph which are satisfactory in relation to one another, having regard to the circumstances of the area of extensive war damage and the requirements of a proper lay-out and redevelopment.

(2) The approval under the preceding subsection of any proposals may be made subject to compliance with requirements imposed by the Secretary of State for securing, to such extent as he may specify, that any valuation, or negotiations for the acquisition, of land in the area of extensive war damage to be acquired by the local planning authority under this Part of this Act, or of other land to be so acquired, being land such as is mentioned in paragraph (b) of subsection (1) of section five of this Act, will be carried out by the Valuation Office.

(3) Grants under either of the two last preceding sections shall be payable at such times and in such manner as the Treasury may direct and subject to such conditions as to records, certificates, audit or otherwise as the Secretary of State may with the approval of the Treasury impose.

Quinquennial
review of
financial
effect of re-
development.

8.—(1) An authority whose proposals for the redevelopment of any part of their area have been approved under the last preceding section shall, in such year as the Secretary of State may require and in each fifth year thereafter, submit to the Secretary of State such particulars as may be prescribed by regulations made by the Secretary of State with the approval of the Treasury after consultation with such associations of local authorities as appear to the Secretary of State to be concerned, as respects such matters as may be so prescribed, with regard to the financial effect of the carrying out of the redevelopment to which the proposals, and any other proposals of the authority so approved, relate.

(2) Where it appears to the Secretary of State, having regard to particulars submitted by an authority in pursuance of the preceding subsection, taken together with any previous

particulars so submitted, that a net gain has accrued to the authority from the carrying out of the redevelopment to which the statement or statements in question relate, he may notify the authority accordingly, and after considering any representations made by the authority may certify the amount thereof; and the amount certified, less any amount previously certified under this subsection, shall be applied in repayment to the Secretary of State of grants made to the authority under subsection (2) or (3) of section five of this Act.

PART I
—cont.

(3) Receipts of the Secretary of State under the last preceding subsection shall be paid into the Exchequer.

Acquisition of land for certain planning purposes.

9.—(1) Where the Secretary of State is satisfied that it is requisite, for the purpose of dealing satisfactorily with conditions of bad lay-out and obsolete development in the area of a local planning authority, that a part or parts of their area, consisting of land shown to his satisfaction to be land where such conditions exist or of such land together with other land contiguous or adjacent thereto, or such a part or parts of their area together with land outside their area contiguous or adjacent thereto, should be laid out afresh and redeveloped as a whole, the authority may be authorised to purchase compulsorily any land in such a part of their area, and any such land outside their area as aforesaid, by an order made by the authority and submitted to the Secretary of State and confirmed by him in accordance with the provisions of Part I of the Second Schedule to this Act.

Power to
purchase land
for purposes
relating to
redevelopment
of areas of
bad lay-out
and obsolete
development.

References in the following provisions of this section to a part of the area of an authority as to which the Secretary of State is so satisfied include references to land as to which he is so satisfied consisting of a part of the area of the authority together with land outside their area but contiguous or adjacent thereto.

(2) Where the Secretary of State is satisfied as aforesaid as to a part of the area of a local planning authority and is further satisfied that land is or will be required for the purpose of providing for re-location of population or industry, or for replacement of open space, in the course of the redevelopment thereof, the authority may be authorised in manner mentioned in subsection (1) of this section to purchase compulsorily any land which ought in the opinion of the Secretary of State to be made available for that purpose.

In this Act the expressions "re-location of population or industry," and "replacement of open space," have, in relation to a part of the area of a local planning authority as to which

PART I.
—cont.

the Secretary of State is satisfied as aforesaid, the like meanings as are assigned to those expressions respectively by section one of this Act in relation to an area of extensive war damage.

(3) Where the Secretary of State is satisfied as mentioned in subsection (1) of this section as to a part of the area of a local planning authority, a local highway authority may be authorised in manner therein mentioned to purchase compulsorily any land as to which the Secretary of State is satisfied that its acquisition by that authority is, in relation to the part in question of the area of the local planning authority, requisite as mentioned in subsection (1) of section three of this Act in relation to an area of extensive war damage, and the Minister of War Transport may be authorised, by an order made by him in accordance with the provisions of Part II of the Second Schedule to this Act, to purchase compulsorily any land as to which he is satisfied that its acquisition by him is, in relation to the part in question of the area of the local planning authority, requisite as mentioned in subsection (2) of section three of this Act in relation to an area of extensive war damage:

Provided that the power to authorise compulsory purchase conferred by this subsection shall be subject to the limitation specified in subsection (5) of section three of this Act as regards cases in which owners have entered, or are willing to enter, into agreements for controlling the development of frontages or other land.

(4) Where the Secretary of State is satisfied as mentioned in subsection (1) of this section as to a part of the area of a local planning authority, and the purchase of any land in that part of that area, or of any land being land that is to be made available for the purpose of providing for re-location of population or industry, or for replacement of open space, in the course of the redevelopment of that part of that area or land adjacent to such land,—

- (a) appears to the Minister of Works and the Secretary of State to be necessary for the public service, or
- (b) appears to the Postmaster-General and the Secretary of State to be necessary for the purpose of the Post Office,

the Minister of Works and the Secretary of State, or the Postmaster-General and the Secretary of State, as the case may be, may make in relation to that land in accordance with the provisions of Part II of the Second Schedule to this Act such an order authorising the compulsory purchase thereof as is mentioned in section four of this Act.

Subsection (2) of section forty-six of the Post Office Act, 1908, shall not have effect in relation to a purchase of land made under that section compulsorily pursuant to an order under this subsection.

(5) Without prejudice to any other power in that behalf, a local planning authority or a local highway authority may, with the consent of the Secretary of State, acquire by agreement any land which they could be authorised under this section to purchase compulsorily.

(6) The provisions of subsections (1) and (2) of section six of this Act as to the making of contributions by a local planning authority towards expenses incurred by a local highway authority and the Minister of War Transport shall, with the necessary modifications, apply in relation to a part of the area of a local planning authority as to which the Secretary of State is satisfied as mentioned in subsection (1) of this section, and in relation to land to be made available for the purpose of providing for re-location of population or industry, or for replacement of open space, in the course of the redevelopment of such a part of their area, as those provisions apply in relation to an area of extensive war damage the whole or any part of which is comprised in the area of a local planning authority and in relation to land to be made available for the purpose for providing for such re-location or replacement in the course of the redevelopment of such an area of extensive war damage.

(7) Expenses of the Minister of War Transport under subsection (3) of this section shall be defrayed out of the Road Fund, and receipts of the Minister under the last preceding subsection shall be paid into the Exchequer.

10.—(1) A local planning authority may be authorised by an order made by the authority and submitted to the Secretary of State and confirmed by him in accordance with the provisions of Part I of the Second Schedule to this Act to purchase compulsorily any land as to which the Secretary of State is satisfied that its acquisition by the authority is expedient on the ground that land is or will be required—

Power to purchase land for certain planning purposes.

- (a) as a site for development of any class which is needed for the proper planning of the area of the authority, whether in its existing state or as intended, in order to secure a proper balance of development;
- (b) for use as a public open space or a playing-field;
- (c) as a site for development for a purpose the furtherance whereof is in the public interest, in substitution for land on which it is desired to carry out development for that purpose, whether consisting of the

PART I.
—cont.

making good of war damage or of any other operation, but on which that development cannot be allowed consistently with the proper planning of the area of the authority;

- (d) for providing accommodation for persons or undertakings who are for the time being living or carrying on business or other activities elsewhere by reason of war circumstances, but who would be likely to return or come to the area of the authority, or to a particular part of their area, if accommodation elsewhere is not provided, and whose location in their area, or in that part thereof, as the case may be, would be inconsistent with the proper planning thereof;

and that the land in question ought to be made available for meeting that requirement:

Provided that a local planning authority shall not be authorised under this subsection to acquire land to meet a requirement falling within paragraph (a), (c) or (d) thereof if the Secretary of State is satisfied that the nature of the requirement and other circumstances are not such as to render it expedient in the public interest that the land to be used for meeting the requirement should be acquired by a local planning authority, that a person other than a local planning authority is able and willing to meet the requirement at such time and in such manner as may be requisite, and that land is available therefor on reasonable terms.

(2) A local planning authority may be authorised in manner mentioned in subsection (1) of this section to purchase compulsorily—

- (a) land in, or in the neighbourhood of, a part of their area being an area of extensive war damage which, for the purposes of the laying out afresh and redevelopment of that area, ought in the opinion of the Secretary of State to be dealt with together with land in that area as to which an order under section one of this Act or under subsection (2) of section two thereof has come into operation;
- (b) land as to which the Secretary of State is satisfied that its acquisition by the authority is expedient on the ground that land is or will be required, in the course of the redevelopment of a part of the area of the authority being an area of extensive war damage or of land in the neighbourhood of such a part of their area, for the purpose of re-location of population or industry or of replacement of open space, and that the land in question ought to be made available for meeting that requirement.

(3) A local planning authority may be authorised in manner aforesaid to purchase compulsorily land in the area of the authority as to which the Secretary of State is satisfied that, by reason of the land being derelict and likely otherwise to remain so for a considerable period, it is expedient that it should be acquired by the authority with a view to securing that it is brought into use.

(4) Without prejudice to any other power in that behalf, a local planning authority may, with the consent of the Secretary of State, acquire by agreement—

- (a) any land which they could be authorised under this section to purchase compulsorily; or
- (b) any land on which it is desired to carry out the making good of war damage or other development but on which that development cannot be allowed consistently with the proper planning of the area of the authority.

(5) In paragraph (d) of subsection (1) of this section the expression “accommodation” means accommodation for residential purposes or for the carrying on of business or other activities, together with all appropriate public services, facilities for public worship, recreation and amenity and other requirements.

11.—(1) Where the Treasury have certified for the purposes of this section that, having regard to the availability of labour and material, the making good of war damage has in general become practicable in the case of buildings of any description (whether defined by reference to character or situation or other circumstances), and an interim development application is made after the time so certified as respects land which has been rendered, and remains, incapable of reasonably beneficial use in consequence of war damage to buildings or works thereon, being land which before the occurrence of the damage comprised buildings of the description in question, then if—

- (a) a decision is given (whether by the interim development authority or by the Secretary of State) refusing permission for the development, or granting permission therefor for a limited period only or (where the application is for permission for a limited period only) granting the permission for a period shorter than the period applied for, and
- (b) the development could, apart from the provisions of the Town and Country Planning (Scotland) Acts, 1932 and 1943, at the time of the application have been lawfully carried out and there is no alternative development of the land for which permission would

Obligation to
purchase war-
damaged land
where
development
permission
refused.

PART 1.
—cont.

be granted and which could be lawfully carried out within a reasonable period from the time of the application so as to render the land capable of reasonably beneficial use,

any owner of the land may, by notice in writing given to the local planning authority within six months from the date of the decision on the application, require the authority to purchase his interest in the land, and, subject to the provisions of this section, where such a notice is given the authority shall be deemed as from the date on which the notice takes effect in accordance with the following provisions of this section to have been authorised to purchase the interest compulsorily and to have served a notice to treat in respect thereof on that date.

(2) Where notice is given to a local planning authority requiring them to purchase an interest in pursuance of the preceding subsection, the authority shall as soon as may be notify to the Secretary of State that the notice has been given, and also whether in their opinion the conditions precedent to the valid giving of the notice are fulfilled, and thereupon the Secretary of State—

- (a) if he is of opinion that a decision falling within paragraph (a) of the preceding subsection should not have been given, may within the period of two months from the receipt of the notification direct that there shall be substituted for the decision given such decision not falling within that paragraph as appears to him to be expedient, and that the notice shall not take effect;
- (b) if he is satisfied that any of the conditions precedent to the valid giving of the notice is not fulfilled, shall within the said period direct that the notice shall not take effect;
- (c) if he is satisfied that, having regard to the benefit which would accrue to the owner in question from the land or any part thereof either in its existing state or if there were carried out thereon any alternative development for which permission would be granted and which could be lawfully carried out within a reasonable period, it is equitable so to do, may within the said period of two months direct that the notice shall not take effect, or shall take effect only as respects such part of the land as may be specified in the direction;
- (d) if he is satisfied that, having regard to the probable ultimate use of all or any part of the land as respects which the notice is to take effect, it is expedient so to do, may direct that as respects the said land or

part thereof the authorisation to purchase and notice to treat referred to in the preceding subsection shall be deemed to have been given and served respectively to and by such county council or town council of a small burgh as may be specified in the direction in lieu of the local planning authority;

and subject to any direction given under this subsection, the notice shall take effect at the expiration of the said period of two months:

Provided that where the Secretary of State proposes to give a direction under this subsection, he shall give notice of the proposal, with such particulars as appear to him requisite, to the persons concerned, that is to say,—

- (i) as respects a direction under paragraph (a), (b) or (c) of this subsection, the owner in question, the local planning authority and the interim development authority (if that authority is not the local planning authority),
- (ii) in the case of a direction under paragraph (d) of this subsection, the local planning authority and the county council or town council in question,

and if any of the persons concerned desire to make representations with respect to the proposed direction, the Secretary of State shall not determine whether or not to give the direction until he has afforded to the persons concerned an opportunity of appearing before and being heard by a person appointed by him for the purpose.

Where the Secretary of State gives a direction under paragraph (d) of this subsection, he shall as soon as may be give notice thereof to the owner in question.

(3) As respects any application for permission to develop land which has been rendered, and remains, incapable of reasonably beneficial use in consequence of war damage to buildings or works thereon, the power of an interim development authority under subsection (2) of section two of the Town and Country Planning (Interim Development) (Scotland) Act, 1943, to postpone the consideration of an interim development application—

- (a) shall not be exercisable where the application is made after the time certified under subsection (1) of this section in relation to any description of buildings which would be comprised in the land after the carrying out of the development for permission for which application is made;
- (b) where the application is made before the said time, shall not be exercisable so as to postpone the consideration of the application beyond the said time.

PART I.
—*cont.*

(4) The provisions of subsections (1) and (2) of this section shall apply in relation to an application for permission for development made under a planning scheme as they apply in relation to an interim development application, but with the substitution for the references to the interim development authority of a reference to the responsible authority (that is to say, the authority responsible for enforcing and carrying out the relevant provisions of the scheme), and for the reference in paragraph (b) of the said subsection (1) to development for which permission would be granted of a reference to development which could be carried out in conformity with the provisions of the scheme or of permission granted thereunder.

(5) Any question arising under this section or under the proviso to subsection (4) of section two of this Act as to the meaning of the expression "reasonably beneficial use" shall be determined as follows:—

(a) land shall be deemed to have been rendered incapable of reasonably beneficial use if it was immediately after the occurrence of the war damage in question in a state such as to make it incapable of being as beneficially used while remaining in that state as it was immediately before the occurrence of the damage, and shall be deemed to remain incapable of reasonably beneficial use so long as it is in such a state as aforesaid;

(b) land shall be deemed to have been rendered capable of reasonably beneficial use, and an alternative development of land shall be deemed to be such as would render land capable of reasonably beneficial use, if the land has been brought, or the development would bring the land, as the case may be, into a state such as to make it capable of being as beneficially used while remaining in that state as it was immediately before the occurrence of the war damage in question.

(6) In determining whether there is alternative development which could be carried out so as to render land capable of reasonably beneficial use, regard shall be had to the extent to which any use would involve foregoing the benefit of any buildings or works or parts thereof remaining on the land and still having value.

(7) For the purposes of paragraph (b) of subsection (1) of this section, alternative development may be treated as being such as could be carried out so as to render land capable of reasonably beneficial use, notwithstanding that it would not otherwise be so treated, if it is equitable so to do having

regard to any contribution which the owner will receive under subsection (4) of section ten of the Town and Country Planning (Scotland) Act, 1932, in respect of the refusal of an interim development application, and in considering whether it is equitable to give a direction under paragraph (c) of subsection (2) of this section, the Secretary of State shall have regard to any such contribution.

PART I.
—cont.
22 & 23 Geo. 5.
c. 49.

(8) Any question arising under paragraph (b) of subsection (1) of this section or under the last preceding subsection shall be determined by the Secretary of State; and, subject to the preceding provisions of this subsection, any such question as is mentioned in subsection (5) of this section shall be determined by the War Damage Commission.

(9) The purchase of any interest by a local authority in purported pursuance of this section shall be conclusive evidence that every condition precedent to the authority being empowered to purchase the interest has been fulfilled:

Provided that this subsection shall not prejudice the provisions of subsection (2) of this section, or the effect of any direction given under that subsection.

(10) A county council or the town council of any burgh may contribute towards the expenses incurred by a local planning authority under this section, and any expenditure incurred under this subsection by any such council, not being a local planning authority, shall be defrayed in manner provided by section forty-nine of the Town and Country Planning (Scotland) Act, 1932.

(11) References in this Act to land which has been acquired and is for the time being held by a local planning authority for the purposes of this Part of this Act include references to land acquired by such an authority under this section which has not been disposed of by them, or appropriated by them for any such purpose as is mentioned in subsection (3) of section eighteen of this Act.

General provisions as to the acquisition of land under Part I.

12.—(1) Any authorisation of the compulsory purchase of land outside the area of a local planning authority which under the preceding provisions of this Act could be given to that authority (in this section referred to as "the promoting authority") may in lieu of being given to the promoting authority be given, in the like manner and subject to the like conditions, to the local planning authority in whose area the land is situated (in this section referred to as "the area authority").

Power to
authorise
purchase by
local planning
authority for
area where
land is, in
lieu of by
another
authority.

PART I.
—cont.

(2) The area authority may, in connection with the giving to them of an authorisation under this section, enter into an agreement with the promoting authority containing any terms approved by the Secretary of State as to any matters relating to the carrying out of the purpose for which the purchase in question may be authorised, and in particular, in the case of a purchase for the purpose of providing for re-location of population or industry in the course of the redevelopment of a part of the area of the promoting authority, as to the lay-out and manner of use of the land to be purchased and as to rendering accommodation provided therein available for persons or undertakings from the area of the promoting authority.

(3) Before giving an authorisation to the area authority under this section, the Secretary of State shall consult the promoting authority, and shall afford them an opportunity of negotiating with the area authority for such an agreement as aforesaid; and, if thereafter it appears to the Secretary of State that the authorisation should be given to the area authority but no such agreement has been made, he may as a condition of giving it require the area authority to give to the promoting authority an undertaking to observe such terms as to any of the matters aforesaid as appear to him to be expedient.

(4) The terms of an agreement entered into or undertaking given under this section may be varied from time to time by agreement made between the promoting authority and the area authority with the approval of the Secretary of State, and may at the instance of either of those authorities be varied by the Secretary of State after consultation with the other; and any direction or decision which the Secretary of State has power to give under any enactment shall have effect notwithstanding that it may be inconsistent with anything that would otherwise have been required by virtue of any such terms:

Provided that, before giving a direction or decision appearing to the Secretary of State to involve any such inconsistency, he shall consult the promoting authority.

(5) The Secretary of State may give his consent to the acquisition by agreement by the area authority of any land for the compulsory purchase of which by them an authorisation could be given under this section, subject as is provided by this section as regards such an authorisation, and accordingly references in subsections (2) and (3) of this section to an authorisation shall include references to such consent, and the area authority may, without prejudice to any other power in that behalf, acquire by agreement any land as to which such consent is given.

PART I.

—cont.

Modifications
as to
procedure and
compensation
for purchase in
case of land
held for the
carrying on
of statutory
undertakings.

13.—(1) The preceding provisions of this Act as to the manner in which authorisation may be given for the compulsory purchase of land under the several enactments in that behalf contained in those provisions shall have effect subject to the provisions of this section in the case of land to which this section applies, that is to say, land which is used for the purpose of the carrying on of a statutory undertaking, or in which an interest is held for that purpose, other than any such land which is in respect of its nature or situation comparable rather with the generality of land as respects which those enactments have effect than with the generality of land which is used, or in which interests are held, for the purpose of the carrying on of statutory undertakings.

(2) Any question arising in relation to an authorisation of a compulsory purchase under any of the said enactments whether land is land to which this section applies shall be determined by the Minister having jurisdiction to authorise a compulsory purchase thereunder in the case of land other than land to which this section applies and the appropriate Minister.

(3) If with respect to any of the land as respects which an order authorising a compulsory purchase under any of the said enactments is submitted, or is proposed to be made, in accordance with the procedure therein mentioned, the person carrying on a statutory undertaking makes to the appropriate Minister, in the prescribed manner and within the time within which objections to the order may be made, a representation that it is land to which this section applies and a request that it should be excluded from the order, and it is determined that it is land to which this section applies, then, subject to the provisions of subsection (5) of this section, the order shall, if it relates only to that land, not be confirmed or not be made, as the case may be, or, if it relates in part to that land, be modified so as to exclude it.

(4) A compulsory purchase of land under any of the said enactments may, in the case of land to which this section applies, be authorised—

- (a) in the case of a purchase by a local planning authority or a local highway authority, by an order made by the Secretary of State and the appropriate Minister in accordance with the provisions of Part I of the Third Schedule to this Act on the application of that authority; or
- (b) in the case of a purchase by a Minister, by an order made by the Minister having jurisdiction by virtue

PART I,
—cont.

of the enactment in question to authorise a compulsory purchase thereunder and the appropriate Minister in accordance with the provisions of Part II of the Third Schedule to this Act:

Provided that if any objection to an application for, or proposal to make, an order giving an authorisation in accordance with this subsection is duly made by the person carrying on a statutory undertaking for the purpose of the carrying on of which an interest in any land to which the application or proposal relates is held, or any such land is used, and is not withdrawn, any order made thereon shall be provisional only and shall be of no effect until confirmed by Parliament.

(5) Where an order in relation to which subsection (3) of this section would apart from this subsection have effect as respects any land is an order under subsection (1) of section two or under section four of this Act authorising the compulsory purchase of that land as being land as to which an order under section one of this Act is in force, the following provisions shall have effect, that is to say—

- (a) subsection (3) of this section shall not have effect as respects the land in question unless within the time allowed for making objections to the application for the relevant order under section one of this Act the person carrying on a statutory undertaking has made to the appropriate Minister in the prescribed manner a representation that the land in question is land to which this section applies;
- (b) where such a representation is so made as respects any land, the Secretary of State and the appropriate Minister may make under this subsection an order which shall be provisional only and shall be of no effect until confirmed by Parliament, declaring that it is expedient that that land should be subject to compulsory purchase, and if such an order has taken effect as respects the land in question, subsection (3) of this section shall not have effect as respects it.

(6) The provisions of the Fourth Schedule to this Act shall have effect, as respects the interest of the person by whom the undertaking in question is being carried on, as to the compensation to be paid in respect of a compulsory purchase under this Part of this Act of land to which this section applies, including compensation to be estimated in connection with the purchase for damage sustained by reason of the severing of land the subject thereof from other land held therewith or otherwise injuriously affecting such other land, and compensation to be so estimated for disturbance or any other matter not directly based on the value of land.

(7) In this Act the expression “statutory undertaking” means any of the following undertakings the carrying on of which is authorised by any Act (whether public general or local) or by any order or scheme made under, or confirmed by, an Act, that is to say,—

- (a) railway, light railway, tramway, road transport, water transport, canal, inland navigation, dock, harbour, pier and lighthouse undertakings;
- (b) undertakings for the supply of electricity, gas, hydraulic power or water;

and as respects statutory undertakings the expression “the appropriate Minister” means—

- (i) in relation to an undertaking falling within paragraph (a) of this subsection, the Minister of War Transport;
- (ii) in relation to an undertaking for the supply of electricity, gas or hydraulic power, the Minister of Fuel and Power;
- (iii) in relation to an undertaking for the supply of water, the Secretary of State;

and in this Act any reference to the Minister of War Transport and the appropriate Minister shall be construed, in relation to any undertaking falling within paragraph (a) of this subsection, as a reference to the Minister of War Transport, and any reference to the Secretary of State and the appropriate Minister shall be construed in relation to any undertaking for the supply of water as a reference to the Secretary of State.

(8) If any question arises, in relation to anything required or authorised to be done under this Act, which Minister was or is the appropriate Minister as defined in this section, the question shall be determined by the Treasury.

14.—(1) Where an order under this Part of this Act authorises the compulsory purchase by a local planning authority or a local highway authority of any land forming part of any common or open space, the order, so far as it relates to the acquisition of such land, shall be provisional only and shall be of no effect until confirmed by Parliament, except where the Secretary of State is satisfied—

Provisions as to purchase and appropriation of open spaces, etc.

- (a) that there has been or will be given in exchange for such land other land, not being less in area, and being equally advantageous to the persons, if any, entitled to rights of common or other rights, and to the public, and that the land given in exchange has been or will be vested in the persons in whom the land purchased was vested, and subject to the like

PART I.
—*cont.*

rights, trusts and incidents as attached to the land purchased; or

- (b) that the land is required for the widening of an existing highway and that the giving in exchange of other land is unnecessary, whether in the interests of the persons, if any, entitled to rights of common or other rights or in the interests of the public,

and certifies accordingly.

(2) A local planning authority may be authorised, by an order made by the authority and submitted to the Secretary of State and confirmed by him, to appropriate for the purposes of this Part of this Act any land for the time being held by them for other purposes being land to which this subsection applies, that is to say, land which is, or forms part of, a common or open space (including any such land which is specially regulated by any public general or local enactment):

Provided that an order under this subsection shall be provisional only and shall be of no effect until confirmed by Parliament, except as mentioned in the preceding subsection.

(3) Where it is proposed to certify as aforesaid, the Secretary of State shall give public notice of his intention so to do, and—

- (a) after affording opportunity to all persons interested to make representations and objections in relation thereto, and
- (b) after causing a public local inquiry to be held in any case where it appears to him to be expedient so to do, having regard to any representations or objections made,

may, after considering any representations and objections made and, if an inquiry has been held, the report of the person who made the inquiry, give the certificate.

(4) So soon as may be after the giving of a certificate under this section the local planning authority or the local highway authority shall publish by Gazette and local advertisement a notice in the prescribed form stating that the certificate has been given.

(5) Where—

- (a) a purchasing authority have been authorised under any enactment in this Part of this Act to purchase compulsorily land forming part of a common or open space, or
- (b) a local planning authority have been authorised under subsection (2) of this section to appropriate any such land,

the authority may be authorised, in a case falling within paragraph (a) of this subsection in accordance with the provisions of the enactment therein mentioned, and in a case falling within paragraph (b) thereof in accordance with the provisions of section ten of this Act, to purchase compulsorily, or they may acquire by agreement, land for giving in exchange for the land purchased or appropriated:

Provided that the power of a local planning authority or a local highway authority under this subsection to acquire land by agreement shall be exercisable only with the consent of the Secretary of State.

(6) Section forty of the Local Government (Scotland) Act, 19 & 20 Geo. 5. 1929, (which contains provisions as to the appropriation by c. 25. local authorities of land vested in them) shall not apply to land to which subsection (2) of this section applies and which is for the time being held by a local planning authority.

(7) In the case of an appropriation under this section of land acquired under any enactment incorporating section six of the Railways Clauses Consolidation (Scotland) Act, 1845, 8 & 9 Vict. or under any order made under any enactment and incor- c. 33. porating that section, any work executed on the land after the appropriation has been effected shall, for the purposes of the said section six, be deemed to have been authorised by the enactment or order under which the land was acquired.

(8) In this section the expression "common" includes any town or village green, and the expression "open space" means any land laid out as a public garden, or used for the purposes of public recreation, or any disused burial ground.

15.—(1) If any person aggrieved by an order under section one of this Act, or an order authorising a compulsory purchase of land under any enactment in this Part of this Act, or a certificate or order under the last preceding section, desires to question the validity thereof, or of any provision contained therein, on the ground that it is not within the powers of this Act or that any requirement of this Act or of any regulation made thereunder has not been complied with in relation to the order or certificate, he may, within twenty-eight days from the date on which notice of the making or confirmation of the order by the Minister having jurisdiction to make or confirm such an order, or notice of the giving of the certificate, is first published in accordance with the provisions of this Act in that behalf, make an application to the Court of Session, and on any such application the Court—

Validity and
date of
operation of
orders, etc.

(a) may by interim order suspend the operation of the order or any provision contained therein, or of the certificate, either generally or in so far as it affects

PART I.
—*cont.*

any property of the applicant, until the final determination of the proceedings; and

- (b) if satisfied that the order or any provision contained therein, or the certificate, is not within the powers of this Act or that the interests of the applicant have been substantially prejudiced by any requirement of this Act or of any regulation made thereunder not having been complied with, may quash the order or any provision contained therein, or the certificate, either generally or in so far as it affects any property of the applicant.

(2) Subject to the provisions of the preceding subsection, such an order or certificate shall not, either before or after it has been made or confirmed or given as aforesaid, be questioned in any legal proceedings whatsoever.

(3) Except by leave of the Court of Session, no appeal shall lie to the House of Lords from a decision of the Court of Session under this section.

(4) Subject to the provisions of subsection (1) of this section, such an order or certificate shall become operative on the date on which notice of the making or confirmation of the order or of the giving of the certificate is first published in accordance with the provisions of this Act in that behalf.

(5) This section shall not apply to an order which is provisional only and is of no effect until confirmed by Parliament.

Recording of orders, etc., in register of sasines. **16.—(1)** The authority on whose application an order under section one of this Act is made, and the purchasing authority under an order authorising a compulsory purchase of land under any enactment in this Part of this Act, shall, as soon as may be after the order becomes operative, record it in the appropriate Register of Sasines.

(2) Any direction given by an authority under subsection (13) of section one of this Act shall, as soon as may be after it has been given, be recorded by the authority in the appropriate Register of Sasines.

Incorporation of Lands Clauses Acts, etc., with modifications, including modifications providing for expedited completion of purchases. **17.—(1)** The Lands Clauses Acts and section six of the Railways Clauses Consolidation (Scotland) Act, 1845, are hereby incorporated with this Part of this Act, subject to any necessary adaptations and to the provisions of Part I of the Fifth Schedule to this Act.

(2) The Acquisition of Land (Assessment of Compensation) Act, 1919, shall, in its application for the purposes of this Part of this Act have effect subject to any necessary adaptations and subject to the provisions of Part II of the Fifth Schedule to this Act.

(3) If the Minister having jurisdiction to confirm or make an order authorising a compulsory purchase of land under this Act (including such an order giving an authorisation in accordance with subsection (4) of section thirteen of this Act) is satisfied when he confirms or makes the order that it is requisite that the purchasing authority should have power, as respects the whole or any part of the land, to enter thereon and to secure the vesting thereof in the authority before the expiration of the time that would be needed for service of notices to treat, and the order as submitted or the draft of the order or the application therefor, as the case may be, contained, or included an application for, a direction in that behalf—

- (a) the order may direct that the provisions of the Sixth Schedule to this Act shall apply to the order as respects all or any of the land to which the order relates, being land as to which the Minister is satisfied as aforesaid; and
- (b) where such an order applies those provisions the said Schedule shall have effect in relation to the order accordingly, and notices to treat shall be deemed to have been served subject to and in accordance with the provisions thereof.

An order which so directs is in this Act referred to as a “purchase order providing for expedited completion.”

(4) An order authorising a compulsory purchase of land under any enactment in this Part of this Act may provide that section seventy of the Railways Clauses Consolidation (Scotland) Act, 1845 (which relates to the exception of minerals from purchases), and sections seventy-one to seventy-eight of that Act (which relate to restrictions on the working of minerals) as originally enacted and not as amended for certain purposes by section fifteen of the Mines (Working Facilities and Support) Act, 1923, or the said section seventy only, shall be incorporated with this Part of this Act as respects all or any of the land thereby authorised to be purchased, subject to such modifications of references to the railway or works, or to the company, as may be specified in the order, and for the purposes of any such incorporation this Part of this Act (together, in the case of a purchase under section four of this Act or subsection (4) of section nine of this Act, with the relevant enactment mentioned in section four of this Act) and the order shall be deemed to be the special Act.

PART I.

—cont.

Disposal or
appropriation
by local
planning
authority of
land held by
them for
purposes of
this Part.

Powers in relation to land acquired or appropriated.

18.—(1) The following provisions of this section shall have effect with respect to the disposal or appropriation by a local planning authority of land which has been acquired or appropriated and is for the time being held by them for the purposes of this Part of this Act.

(2) Subject to the provisions of subsection (4) of this section, the authority may dispose of any such land to such person, in such manner and subject to such conditions as may appear to them to be expedient in order to secure the best use of that or other land and any buildings or works which have been, or are to be, erected, constructed or carried out thereon, whether by themselves or by any other person, or to secure the erection, construction or carrying out thereon of any buildings or works appearing to them to be needed for the proper planning of the area of the authority; and subject to the provisions of subsection (5) of this section any land so disposed of shall not, except with the consent of the Secretary of State, be disposed of otherwise than at the best price or on the best terms that can reasonably be obtained.

(3) Subject to the provisions of subsection (4) of this section, the authority may appropriate any such land for any purpose for which they are or may be authorised in any capacity to acquire land by virtue of or under any enactment other than this Part of this Act.

(4) The consent of the Secretary of State shall be requisite to any disposal or appropriation of land by a local planning authority under this section, and may be given as respects either a particular disposal or appropriation or disposals or appropriations of any class, and either subject to or free from any conditions or limitations.

(5) The powers conferred by this section on a local planning authority in respect of the disposal of land thereunder, and on the Secretary of State in respect of consent to such disposal, shall be so exercised as to secure so far as may be practicable to persons who were living, or carrying on business or other activities, on land which the authority have acquired for the purposes of this Part of this Act, who desire to obtain accommodation on such land, and who are willing to comply with any requirements of the authority as to the development and use of such land, an opportunity to obtain accommodation thereon on terms settled with due regard to the price at which any such land has been acquired from them.

(6) Where land is disposed of under this section by a local planning authority to any person for the erection of a church or other building for religious worship or buildings ancillary thereto, then, unless the parties otherwise agree, such disposal shall be by way of feu.

(7) Where representations are made to the Secretary of State—

- (a) that a local planning authority have refused to dispose of any land under this section to any person or to agree with him as to the manner in which, or the terms or conditions on or subject to which, it is to be disposed of to him; and
- (b) that the refusal constitutes unfair discrimination against that person or is otherwise oppressive,

the Secretary of State may cause the representations to be intimated to the authority; and after considering any statement in writing made to him by the authority, the Secretary of State may, if he thinks fit, cause a public local inquiry to be held and after considering the report of the person appointed to hold the inquiry (if any), may, if it appears to him that the representations are well founded and that it is expedient as mentioned in subsection (2) of this section that the authority should dispose of the land under this section to that person, require the authority to offer to dispose of it to him, and give directions as to the manner of the disposal and as to all or any of the terms or conditions on or subject to which it is to be offered to him.

(8) In the exercise of the powers conferred by this section, a local planning authority shall have regard to the desirability of preserving features of special architectural or historic interest, and in particular buildings included in any list compiled or approved under the provisions of section forty-one of this Act, and the Secretary of State shall not give his consent to the disposal or appropriation under this section of any land comprising a building included in such a list unless either—

- (a) the consent is given subject to such conditions or limitations as in the opinion of the Secretary of State will secure the preservation of the building; or
- (b) the Secretary of State is satisfied, after causing such particulars as appear to him requisite of the disposal or appropriation for which his consent is sought to be published by Gazette and local advertisement not less than twenty-eight days before he gives his decision on the application for his consent, that the purpose which the local planning authority seek to

PART I.
—cont.

achieve by the proposed exercise of their powers under this section is one which ought in the public interest to be carried out, and either that the preservation of the building would prevent the carrying out of that purpose, whether by the use of the land in question or otherwise, or that the effect of preserving the building on the carrying out as aforesaid of the said purpose would be such that notwithstanding the desirability of preserving the building it is inexpedient so to do.

In this subsection the expression "preservation," in relation to a building, means the preservation thereof either in its existing state or subject only to such alterations or extensions as can be carried out without serious detriment to its character.

(9) In this section (except in subsection (6)) references to disposal of land shall be construed as references to disposal thereof in any manner (otherwise than by appropriation) whether by way of sale, feu, excambion or lease, by the creation of any servitude, right or privilege, or in any other manner, except disposal by way of gift or in security.

(10) In relation to land which has been acquired or appropriated and is for the time being held by a local planning authority for the purposes of this Part of this Act, this section shall have effect to the exclusion of the provisions of any enactment, other than this Part of this Act, by virtue of or under which the authority are or may be authorised to dispose of or appropriate land held by them.

Power of local
planning
authority to
carry out
development
of land
held by
them for
purposes of
this Part.

19.—(1) The functions of a local planning authority shall include power for the authority, notwithstanding any limitation imposed by law on the capacity of such a body by virtue of its constitution, to erect, construct or carry out on land which has been acquired or appropriated and is for the time being held by them for the purposes of this Part of this Act any building or work not being a building or work for the erection, construction or carrying out of which, whether by them or by any other person, statutory power already exists by virtue of or under an enactment other than this Part of this Act, or could be conferred under an enactment other than this Part of this Act,

(2) The consent of the Secretary of State shall be requisite to any exercise by a local planning authority of the power conferred on them by the preceding subsection, and may be given as respects either a particular operation or operations of any class, and either subject to or free from any conditions or limitations.

(3) The Secretary of State shall not give his consent for the purposes of the last preceding subsection as respects any operation if it appears to him that a person other than the local planning authority is able and willing to carry it out at such time and in such manner as may be requisite for meeting the purpose for which it is needed, on the assumption that the land in question will be made available to him on such terms and subject to such conditions as might reasonably be agreed between the authority and him:

Provided that the limitation imposed by this subsection shall not have effect in the case of subsequent operations forming part of a project for the initiation of which the authority have incurred expenditure if those operations ought in the opinion of the Secretary of State to be carried out by them in order to enable them to balance their expenditure in connection with the project as a whole.

(4) Where a local planning authority propose to carry out any operation which they would have power to carry out by virtue only of subsection (1) of this section, they shall notify the Secretary of State of their proposal, and the Secretary of State may direct such advertisement by the authority as appears to him to be requisite for the purposes of the two last preceding subsections.

(5) The functions of a local planning authority shall include power for the authority, notwithstanding any such limitation as is mentioned in subsection (1) of this section, to repair, maintain and insure any buildings or works on such land as is mentioned in the said subsection (1), and generally to deal therewith in a proper course of management.

(6) Subsection (8) of the last preceding section shall apply to the power conferred on a local planning authority by subsection (1) of this section as it applies to the powers conferred by that section, with the substitution for references to the disposal or appropriation of land of references to the carrying out of any such operation as is mentioned in subsection (1) of this section.

(7) A local planning authority may, with the consent of the Secretary of State, enter into arrangements with an authorised association, as defined in section thirty-four of the Town and Country Planning (Scotland) Act, 1932, or with any other association which may be approved by the Secretary of State for the purposes of this subsection, for the carrying out by the association of any operation which, apart from the arrangements, the local planning authority would have power under this section to carry out, on such terms (including terms

PART I.
—*cont.*

as to the making of payments or loans by the authority to the association) as may be specified in the arrangements:

Provided that nothing in this subsection shall be construed as authorising such an association to carry out any operation which they would not have power to carry out apart from this subsection.

(8) Nothing in this section shall be construed as authorising any act or omission on the part of a local planning authority which is actionable at the instance of any person on any ground other than such limitation as is mentioned in subsection (1) of this section.

Power of
local highway
authority to
construct new
roads for
purposes of
this Part.

9 Edw. 7. c. 47.

20. The Minister of War Transport may authorise a local highway authority to construct any new road appearing to him to be needed for any purpose in connection with which such an authority or a local planning authority may be authorised under this Part of this Act to acquire land, and where a local highway authority are authorised under this section to construct a new road the provisions of section ten of the Development and Road Improvement Funds Act, 1909 (which contains provisions as to the construction of new roads in respect of which an advance is made under that Act, as to the expenses of the construction thereof, and as to the maintenance thereof) shall have effect as if the road were a road in respect of the construction of which such an advance were made to them and as if the authorisation were given under that section.

Authorisation
of develop-
ment on land
acquired for
purposes of
this Part not-
withstanding
interference
with servi-
tudes, etc.

8 & 9 Vict.
c. 19.

21.—(1) The erection, construction or carrying out, or maintenance, of any building or work on land which has been acquired or appropriated by a local planning authority or a local highway authority for the purposes of this Part of this Act, whether done by the authority or by any other person, shall be deemed to be authorised by this Part of this Act if it conforms with planning control notwithstanding that it involves interference with any servitude or any right over land or any breach of any restriction as to the use of land arising by virtue of any deed or contract, but subject to payment of compensation under section sixty-one of the Lands Clauses Consolidation (Scotland) Act, 1845, or under section six of the Railways Clauses Consolidation (Scotland) Act, 1845, to be assessed in the same manner and subject to the same rules as in the case of other compensation under those sections in respect of injurious affection where the compensation is to be estimated in connection with a purchase by such an authority or the injury arises from the execution of works on land acquired by such an authority:

Provided that nothing in this subsection shall authorise interference with any such right as is mentioned in section twenty-four of this Act.

(2) Any liability of a person other than the local planning authority or the local highway authority by whom the land in question was acquired or appropriated to pay such compensation as aforesaid which that person fails to discharge shall be enforceable against that authority:

PART I.
—cont.

Provided that nothing in this subsection shall be construed as affecting any agreement between the authority and any other person for indemnifying the authority against any liability under this subsection.

(3) For the purposes of subsection (1) of this section, the erection, construction or carrying out, or maintenance, of any building or work shall be treated as conforming with planning control if it is done in accordance with the terms of an interim development order or of permission granted under such an order, or in conformity with the provisions of a planning scheme, and not otherwise:

Provided that for the purpose of this subsection anything done by an interim development authority or by the authority responsible for the enforcement of any provisions of a planning scheme shall be treated as conforming with planning control if it is done with the consent of the Secretary of State.

(4) Nothing in this section shall be construed as authorising any act or omission on the part of a local planning authority, or local highway authority or of any body corporate, in contravention of any limitation imposed by law on the capacity of such a body by virtue of its constitution, or as authorising any act or omission on the part of any person which is actionable at the instance of any person on any ground other than such interference or breach as is mentioned in subsection (1) of this section.

(5) In this section the expression "right over land" means any liberty, privilege, right or advantage annexed to land and adversely affecting other land, and includes a natural right of support.

22.—(1) The Secretary of State may by order extinguish any public right of way over land which has been acquired or appropriated and is for the time being held by a local planning authority or a local highway authority for the purposes of this Part of this Act, or which has been acquired by a Minister thereunder and is for the time being held for the purposes for which he acquired the land.

Power to
extinguish
highways over
land acquired
for purposes
of this Part.

(2) The Secretary of State shall cause a notice stating the effect of any order that he proposes to make under this section, and specifying the time (not being less than twenty-eight days from the publication of the notice) within which, and the manner in which, objections to the proposal may be

PART I.
—cont.

made, to be published in such manner as appears to him to be requisite and shall serve a like notice—

- (a) on the local planning authority in whose area the land is situated, except where that authority applied for the making of the order, and
- (b) on any authority being the authority responsible for the right of way proposed to be extinguished, except where that authority applied for the making of the order;

and the provisions of the First Schedule to this Act shall have effect in relation to the proposal if any objection thereto is duly made.

(3) Where the Secretary of State is satisfied that the construction or improvement of a road is or will be needed in consequence of the extinguishment under this section of a public right of way, the provisions of section three of this Act shall have effect as they have effect where the Secretary of State is satisfied that the construction or improvement of a road is needed as mentioned in subsection (1) of that section.

(4) Where on the application of a local planning authority or local highway authority an order is made under this section extinguishing a public right of way, and at the time of publication of the notice required by subsection (2) of this section there was under, in, upon, over, along or across the land over which the right of way subsisted any telegraphic line belonging to or used by the Postmaster-General,—

- (a) the power of the Postmaster-General to remove the line shall be exercisable notwithstanding the making of the order, so, however, that the said power shall not be exercisable, as respects the whole or any part of the line, after the expiration of a period of three months from the date on which the right of way is extinguished unless before the expiration of that period the Postmaster-General has given notice to the local planning authority or local highway authority of his intention to remove the line or that part thereof, as the case may be;
- (b) the Postmaster-General may by notice to the local planning authority or local highway authority in that behalf abandon the said line or any part thereof, and shall be deemed, as respects the line or any part thereof, to have abandoned it at the expiration of the said period of three months unless before the expiration of that period he has removed it or given notice of his intention to remove it;
- (c) the Postmaster-General shall be entitled to recover from the local planning authority or local highway authority the expense of providing, in substitution

for the line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the line, a telegraphic line in such other place as the Postmaster-General may require;

PART I.
—cont.

- (d) where under paragraph (b) of this subsection the Postmaster-General has abandoned the whole or any part of a telegraphic line, it shall vest in the local planning authority or local highway authority, and the provisions of the Telegraph Acts, 1863 to 1943, shall not apply in relation to the line or part in question as respects anything done or omitted after the abandonment thereof.

In this subsection the expression " telegraphic line " has the same meaning as in the Telegraph Act, 1878. 41 & 42 Vict.
c. 76.

23.—(1) Upon the completion by the purchasing authority of a compulsory purchase under this Part of this Act of any land, all private rights of way and rights of laying down, erecting, continuing or maintaining any apparatus on, under or over the land and all other rights or servitudes in or relating to that land shall be extinguished and any such apparatus shall vest in the purchasing authority: Extinguish-
ment of
private ways,
servitudes,
and rights
as to
apparatus,
over or in land
purchased for
purposes of
this Part.

Provided that this section shall not apply to any right vested in, or any apparatus belonging to, the person carrying on a statutory undertaking for the purpose of the carrying on thereof, and shall have effect as respects other matters subject to any direction given by the purchasing authority before the completion of the purchase that this section shall not apply to any right or apparatus specified in the direction and subject to any agreement which may be made (whether before or after the completion of the purchase) between the purchasing authority and the person in or to whom the right or apparatus in question is vested or belongs.

(2) Any person who suffers loss by the extinguishment of any right or servitude or the vesting of any apparatus under this section shall be entitled to be paid by the purchasing authority compensation, to be determined under and in accordance with the Acquisition of Land (Assessment of Compensation) Act, 1919, and section fifty-three of this Act shall have effect in relation to compensation payable under this section and to loss suffered as therein mentioned, as it has effect in relation to compensation in respect of land injuriously affected by the execution of works on land acquired by a government department or a local or public authority and to damage sustained by reason thereof.

(3) Expenses incurred by a Minister in the payment of compensation under the last preceding subsection shall be defrayed out of moneys provided by Parliament.

PART I.
—*cont.*
Extinguishment of rights of way, and rights as to apparatus of statutory undertakers.

24.—(1) Where there subsists over land which has been acquired or appropriated and is for the time being held by a local planning authority or a local highway authority for the purposes of this Part of this Act, or which has been acquired by a Minister thereunder and is for the time being held for the purposes for which he acquired the land, any right of way or any right of laying down, erecting, continuing or maintaining any apparatus on under or over the land, or there is on under or over any such land any apparatus, vested in or belonging to the person carrying on a statutory undertaking for the purpose of the carrying on thereof, the authority or the Minister may serve on the said person a notice that at the expiration of such period as may be specified in the notice the right will be extinguished, or requiring that before the expiration of such period as may be so specified the apparatus shall be removed.

(2) A person on whom a notice is served under the preceding subsection may before the expiration of twenty-eight days from the service of the notice serve a counter-notice on the authority or the Minister stating that he objects to all or any of the provisions of the notice and specifying the grounds of his objection.

(3) If no counter-notice is served under the last preceding subsection, any right to which the notice relates shall be extinguished at the end of the period specified in that behalf in the notice, and if at the end of the period so specified in relation to any apparatus any requirement of the notice as to the removal of the apparatus has not been complied with, the authority or the Minister may remove the apparatus and dispose thereof in any way they or he may think fit.

(4) If a counter-notice is served under subsection (2) of this section on a local planning authority or a local highway authority, the authority may either withdraw the notice (without prejudice, however, to the service of a further notice) or apply to the Secretary of State and the appropriate Minister for an order embodying, either with or without modification, the provisions of the notice, and the Secretary of State and the appropriate Minister may if they think fit, after affording to the person carrying on the undertaking an opportunity of objecting to the application and, if any objection is made, after considering the objection and affording to the said person and to the local planning authority or the local highway authority an opportunity of appearing before and being heard by a person appointed by the Secretary of State and the appropriate Minister for the purpose, make an order in accordance with the application, either with or without modification.

(5) If a counter-notice is served under subsection (2) of this section on a Minister, either he may withdraw the notice (without prejudice, however, to the service of a further notice) or he and the appropriate Minister may make an order embodying, either with or without modification, the provisions of the notice.

Where a Minister and the appropriate Minister propose to make an order under this subsection, they shall prepare a draft of the order and shall afford to the person carrying on the undertaking an opportunity of objecting to the proposal and, if any objection is made, shall consider the objection and afford to the said person an opportunity of appearing before and being heard by a person appointed by them for the purpose, and may then make an order in accordance with the draft, either with or without modification.

(6) Subsection (3) of this section shall apply to an order made under either of the two last preceding subsections as it applies to a notice in respect of which no counter-notice is served, but with the substitution for references to a notice of references to an order.

(7) Where an objection to an order under subsection (4) or (5) of this section is duly made and is not withdrawn before the making of the order, the order shall be provisional only and shall be of no effect until confirmed by Parliament.

(8) In respect of the extinguishment of any right, or the imposition of any requirement, under this section, the person carrying on a statutory undertaking shall be entitled to recover from the authority or Minister at whose instance the right was extinguished or the requirement was imposed compensation in accordance with Part I of the Fourth Schedule to this Act.

(9) Expenses incurred by a Minister in the payment of compensation under the last preceding subsection shall be defrayed out of moneys provided by Parliament.

25.—(1) Where it appears to the Secretary of State and the appropriate Minister, on a representation made by the person carrying on a statutory undertaking, that—

Extension
and modifica-
tion of powers
and duties of
statutory
undertakers.

(a) in order to secure the provision of services which would not otherwise be provided, or satisfactorily provided, for any purpose in connection with which a local planning authority may be authorised under this Part of this Act to acquire land, or

(b) in order to facilitate any adjustment of the carrying on of the undertaking necessitated by the acquisition under this Part of this Act of any land an interest

PART I.
—cont.

in which was held, or which was used, for the purpose of the carrying on of the undertaking, or necessitated by the extinguishment of any right, or the imposition of any requirement, under the last preceding section, or necessitated by a decision on an interim development application made by the person carrying on the undertaking for permission to develop land to which section thirty-three of this Act applies or by the revocation or modification of an interim development permission granted on such an application or by the postponement of the consideration of such an application,

it is expedient that the powers and duties of the said person in relation to the carrying on of the undertaking should be extended or modified, the Secretary of State and the appropriate Minister may by order provide for such extension or modification of the said powers and duties as appears to them to be requisite in order to secure the provision of services as mentioned in paragraph (a) of this subsection, or to facilitate the adjustment of the undertaking as mentioned in paragraph (b) of this subsection, as the case may be.

(2) Without prejudice to the generality of the provisions of the preceding subsection, an order under the preceding subsection may provide—

- (a) for empowering the person carrying on the undertaking to acquire, whether compulsorily or by agreement, any land specified in the order and to erect or construct any buildings or works so specified;
- (b) for applying in relation to the acquisition of such land and the construction of such works enactments relating to the acquisition of land and the construction of works (including the Acquisition of Land (Assessment of Compensation) Act, 1919, and Part II of this Act);
- (c) for giving effect, where it has been represented that the making of the order is expedient for the purposes of paragraph (a) of the preceding subsection, to such financial arrangements between the local planning authority and the person carrying on the undertaking as they may agree or, in default of agreement, as may be determined to be equitable in such manner and by such tribunal as may be specified in the order;

and for such incidental and supplemental matters (including the amendment or repeal of any provision in any local enactment) as appear to the Secretary of State and the appropriate Minister to be expedient for the purposes of the order.

(3) As soon as may be after making a representation under subsection (1) of this section, the person carrying on the

undertaking in question shall publish, in such form and manner as may be directed by the Secretary of State and the appropriate Minister, a notice giving such particulars as may be so directed of the matters to which the representation relates and specifying the time (not being less than twenty-eight days) within which, and the manner in which, objection to the making of an order on the representation may be made, and shall serve a like notice on any persons appearing from the valuation roll to have an interest in any land to which the representation relates, and if it is so directed by the Secretary of State and the appropriate Minister, shall also serve a like notice on such other persons, or persons of such classes, as may be so directed.

PART I.
—*cont.*

(4) The provisions of the First Schedule to this Act shall have effect in relation to the making of an order on the representation if any objection thereto is duly made, and, subject to those provisions in a case in which they have effect, the Secretary of State and the appropriate Minister may, if they think fit, make an order.

(5) A local planning authority may represent to the Secretary of State and the appropriate Minister that the making of an order under subsection (1) of this section as respects any statutory undertaking is expedient for the purpose of securing the provision of new services, or the extension of existing services, for any purpose in connection with which the authority may be authorised under this Part of this Act to acquire land, and where such a representation is made the preceding provisions of this section shall have effect as if the representation had been made by the person carrying on the undertaking in question, but with the substitution in subsection (3) for the reference to the person carrying on the undertaking of a reference to the local planning authority.

(6) An order under this section shall be provisional only and shall be of no effect until confirmed by Parliament.

26.—(1) Where on a representation in that behalf made by the person carrying on a statutory undertaking the appropriate Minister is satisfied that the compulsory purchase under this Part of this Act of any land an interest in which was held, or which was used, for the purpose of the carrying on of the undertaking, or the extinguishment thereunder of any right, or the imposition of any requirement as to the removal of apparatus, vested in or belonging to the said person, has rendered impracticable the fulfilment of any obligation of the said person incurred in connection with the carrying on of the undertaking, the appropriate Minister may by order direct that the said person shall be relieved of the fulfilment of the obligation either absolutely or to such extent as may be specified in the order.

Relief of statutory undertakers from obligations rendered impracticable by exercise of powers of this Part.

PART I.
—*cont.*

(2) As soon as may be after making a representation to the appropriate Minister under the preceding subsection, the person carrying on the undertaking in question shall, as may be directed by the appropriate Minister, either publish, in such form and manner as may be so directed, a notice giving such particulars as may be so directed of the matters to which the representation relates and specifying the time (not being less than twenty-eight days) within which and the manner in which objections to the making of an order on the representation may be made, or serve such a notice on such persons, or persons of such classes, as may be so directed, or both publish and serve such notices.

(3) The provisions of the First Schedule to this Act shall have effect in relation to the making of an order on the representation if any objection thereto is duly made, and, subject to those provisions in a case in which they have effect, the appropriate Minister may, if he thinks fit, make an order.

(4) If any objection to the making of an order under this section is made and is not withdrawn before the making of the order, the order shall be provisional only and shall be of no effect until confirmed by Parliament.

(5) The provisions of section fifteen of this Act as to the validity and date of operation of orders shall apply to an order made under this section as they apply to such an order as is mentioned in the said section fifteen.

Provisions as
to churches
and burial
grounds.

27.—(1) Any land consisting of a church or other building used or formerly used for religious worship, or the site thereof, or a burial ground or part of a burial ground, which has been acquired or appropriated by a local planning authority or a local highway authority for the purposes of this Part of this Act, or which has been acquired by a Minister thereunder, may be used in any manner, whether or not involving the erection, construction or carrying out, or maintenance, of any building or work,—

(a) in the case of land acquired or appropriated by a local planning authority or a local highway authority by that authority or by any other person, if that use conforms with planning control, or,

(b) in the case of land acquired by a Minister, by him or on his behalf for any purpose for which he acquired the land,

notwithstanding anything in any enactment relating to churches or such other buildings as aforesaid or to burial grounds or any obligation or restriction imposed under any deed or agreement or otherwise as respects that church or other building or burial ground or part thereof:

Provided that this subsection shall not have effect as respects any such land as aforesaid until the prescribed requirements with respect to the removal and re-interment of human remains and the disposal of tombstones, monuments or other memorials, and fixtures and furnishings in or upon the land have been complied with.

(2) Provision shall be made by any regulations made for the purposes of the proviso to the preceding subsection—

- (a) for requiring the persons in whom the land is vested to publish notice of their intention to carry out the removal and re-interment of any human remains or the disposal of any tombstones, monuments or other memorials, or fixtures or furnishings;
- (b) for enabling the personal representatives or relatives of any deceased person themselves to undertake the removal and re-interment of the remains of the deceased and the disposal of any tombstone, monument or other memorial commemorating the deceased;
- (c) for requiring the persons in whom the land is vested to defray the expenses of such removal, re-interment and disposal not exceeding such amount as may be prescribed;
- (d) for requiring compliance with any directions given in any case by the Secretary of State, after consultation with the church authorities in the case of a church or churchyard, with respect to the manner of removal and the place and manner of re-interment of any human remains and the disposal of any tombstones, monuments or other memorials, and fixtures and furnishings; and
- (e) with regard to such incidental and consequential matters (including the closing of registers) as may appear to the Secretary of State to be expedient for the purposes of the Regulations.

Any expense incurred by a Minister under paragraph (c) of this subsection shall be defrayed out of moneys provided by Parliament.

(3) Subject to the provisions of any such regulations as aforesaid, no authority shall be required for the removal and re-interment in accordance with the regulations of any human remains, or for the removal and disposal of any tombstones, monuments or other memorials, or fixtures or furnishings.

(4) In this section—

- (a) the expression “burial ground” includes any churchyard, cemetery or other ground, whether consecrated or not, which has at any time been set apart for the purpose of interment;

PART I.
—cont.

- (b) the reference to conformity with planning control shall be construed in accordance with subsection (3) of section twenty-one of this Act, with the substitution for references therein to anything done as therein mentioned of references to any use of land, whether or not involving the doing of any such thing.

(5) Nothing in this section shall be construed as authorising any act or omission on the part of a local planning authority or local highway authority or of any body corporate, in contravention of any limitation imposed by law on the capacity of such a body by virtue of its constitution, or as authorising any act or omission on the part of any person that is actionable at the instance of any person on any ground other than contravention of any such enactment, obligation or restriction as is mentioned in subsection (1) of this section.

Authorisation
of use and
development
of open spaces,
etc.,
notwithstanding
restrictions.

28.—(1) Any land being, or forming part of, a common or open space, which has been acquired or appropriated by a local planning authority or a local highway authority for the purposes of this Part of this Act, or which has been acquired by a Minister thereunder, may be used in any manner, whether or not involving the erection, construction or carrying out, or maintenance, of any building or work,—

- (a) in the case of land acquired or appropriated by a local planning authority or a local highway authority, by that authority or by any other person if that use conforms with planning control, or,
(b) in the case of land acquired by a Minister, by him or on his behalf for any purpose for which he acquired the land,

notwithstanding anything in any enactment relating to land of that kind, including any public general or local enactment, by which any such land is specially regulated.

(2) In this section—

- (a) the expressions “common” and “open space” have the meanings assigned to them respectively by section fourteen of this Act;
(b) the reference to conformity with planning control shall be construed in accordance with subsection (3) of section twenty-one of this Act, with the substitution for references therein to anything done as therein mentioned of references to any use of land, whether or not involving the doing of any such thing.

(3) Nothing in this section shall be construed as authorising any act or omission on the part of a local planning authority or local highway authority, or of any body corporate, in contravention of any limitation imposed by law on the capacity of such a body by virtue of its constitution, or as authorising any act or omission on the part of any person

that is actionable at the instance of any person on any ground other than contravention of any such enactment as is mentioned in subsection (1) of this section.

PART I.
—*cont.*

29.—(1) Where the carrying out of redevelopment on land acquired or appropriated by a local planning authority or a local highway authority for the purposes of this Part of this Act will involve the displacement of persons residing in premises thereon, it shall be the duty of the authority, in so far as there is not other residential accommodation available on reasonable terms, to secure the provision of such accommodation in advance of the displacements from time to time becoming necessary as the redevelopment proceeds.

Provisions
as to dis-
placements
from land
acquired
for purposes
of this Part.

(2) Section seventy-nine of the Housing (Scotland) Act, 1925 (which imposes obligations as to the provision of housing accommodation where land is acquired under statutory powers) shall not have effect in relation to an acquisition under this Part of this Act.

15 & 16 Geo. 5.
c. 13.

(3) If the Secretary of State certifies that possession of any house which has been acquired or appropriated and is for the time being held by a local planning authority or a local highway authority for the purposes of this Part of this Act is immediately required for the purposes for which it was acquired or appropriated, nothing in the Rent and Mortgage Interest Restrictions Acts, 1920 to 1939, shall prevent the acquiring or appropriating authority from obtaining possession of the house.

(4) Where possession of any building, or any part of a building, which has been acquired or appropriated by a local planning authority or a local highway authority for the purposes of this Part of this Act, or which has been acquired by a Minister thereunder, is required by them or him for the purposes for which it was acquired or appropriated, then, at any time after the tenancy of the occupier has expired or has been determined, the authority or the Minister may serve a notice on the occupier of the building or part of the building requiring him to remove therefrom within a period of twenty-one days; and on the expiry of that period a certified copy of the notice to remove shall be sufficient warrant for ejection against the occupier or any party in his right in the event of non-compliance with the notice.

(5) A local planning authority or a local highway authority or a Minister may pay to any person who is displaced in the carrying out of redevelopment on land which has been acquired or appropriated by the authority or Minister for the purposes of or under this Part of this Act, such reasonable allowance as they think fit towards his expenses in removing, and to a person carrying on any business in a building from

PART I.
—cont.

which he is so displaced they may pay also such reasonable allowance as they think fit towards the loss which, in their opinion, he will sustain by reason of the disturbance to his business consequent on his having to quit the building, and in estimating that loss they shall have regard to the period for which the premises occupied by him might reasonably have been expected to be available for the purpose of his business and the availability of other premises suitable for that purpose.

Planning provisions.

Duty of local
planning
authority
to furnish
information
to the
Secretary of
State.

30.—(1) It shall be the duty of a local planning authority, on a request in that behalf being made to them by the Secretary of State, to furnish to him, in such manner as he may direct, such particulars of their proposals for the time being for the planning of their area as he may consider requisite for enabling him to consider properly the expediency of his confirming or making a compulsory purchase order under this Part of this Act, of his giving his consent to a disposal or appropriation of land by the authority thereunder, of his giving his consent to the carrying out by them thereunder of building operations or any other authorisation or approval for the purposes of this Part of this Act, or the manner in which any other jurisdiction conferred on the Secretary of State by this Part of this Act ought to be exercised by him.

(2) The power of the Secretary of State under subsection (2) of section six of the Town and Country Planning (Interim Development) (Scotland) Act, 1943 (which enables the Secretary of State to give directions requiring interim development authorities to furnish him with such information with respect to interim development applications received by them as he considers necessary or expedient for the purpose of enabling him to cause an application to be referred to him under subsection (1) of that section) shall include power to require the furnishing of such information with respect to interim development applications (including information as to the manner in which any such application has been dealt with) as he may consider requisite for the purpose of enabling him to consider properly the expediency of his exercising any of his functions under that Act.

Powers of
Secretary of
State with
respect to
development
carried out
by interim
development
authorities and
responsible
authorities.

31.—(1) If it appears to the Secretary of State on representations made to him or otherwise that it is expedient, having regard to considerations affecting the public interest, that there should be referred to him for decision the question whether—

(a) any development of land by the authority empowered by an interim development order to permit the development of that land (other than development which is permitted by the interim development order itself), or,

- (b) any development of land by the authority responsible for the enforcement of any provisions of a planning scheme in relation to that land (other than development which, if the authority were not so responsible, they would be entitled to carry out under the scheme without the permission or approval of the responsible authority),

should be carried out or completed, he may give directions to the authority requiring the question to be so referred, and any decision of the Secretary of State on a question so referred to him shall be deemed for all purposes to be a decision of the authority:

Provided that before dealing with any question so referred to him, the Secretary of State shall, if either the authority or any other person so desires, afford them an opportunity of appearing before and being heard by a person appointed by the Secretary of State for the purpose.

(2) If any development, with respect to which a decision has been given by the Secretary of State under the provisions of the foregoing subsection, is carried out or completed in contravention of the decision, or if any conditions or limitations imposed by the Secretary of State by a decision consenting to the carrying out or completion of the development (including conditions or limitations as to the period for which any building or use may be maintained or continued), are not complied with, the Secretary of State may, if he thinks fit, give directions to the authority requiring them to take such steps in respect of the development (whether by the removal or alteration of any building or work, the discontinuance of any use, or the reinstatement of any land) as he considers requisite, having regard to the provisions of the scheme, or, as the case may be, to the provisions which ought in his opinion to be included in the proposed scheme, and any such directions shall be enforceable on the application of the Secretary of State by proceedings under section ninety-one of the Court of Session Act, 1868.

31 & 32 Vict.
c. 100.

(3) In relation to any development by an interim development authority who carry on a statutory undertaking, being development carried out upon land to which section thirty-three of this Act applies, references in this section to the Secretary of State shall be construed as references to the Secretary of State and the appropriate Minister; and paragraph (b) of subsection (1) of section twenty-five of this Act, and subsections (2), (3), (6) and (7) of section thirty-four of this Act shall apply in relation to a decision under this section in respect of any such development with the substitution in the said subsection (7) for the reference to section three of the Town and Country Planning (Interim Development) (Scotland) Act, 1943, of a reference to subsection (1) of this section.

PART I.
—cont.

(4) For the purposes of section forty of the Town and Country Planning (Scotland) Act, 1932 (which provides that the provisions of a planning scheme shall not apply to land held or used by statutory undertakers for the purposes of their undertaking except in so far as they consent thereto) a responsible authority who carry on a statutory undertaking shall be deemed to consent to the application of the provisions of the scheme to any land belonging to them which is held or used by them for the purposes of that undertaking unless and until they have given to the Secretary of State notice in writing stating that they withhold the consent.

Power
to suspend
planning
schemes and
reimpose
interim
development
control.

32.—(1) Where a resolution to prepare or adopt a planning scheme revoking or varying an existing scheme has taken effect (whether before or after the commencement of this Act), or where the Secretary of State proposes, in exercise of his powers under subsection (4) of section eight of the Town and Country Planning (Scotland) Act, 1932, to make a planning scheme revoking or varying an existing scheme, then if it appears to the Secretary of State that it is expedient so to do—

- (a) for securing that any development prohibited by the existing scheme may be carried out notwithstanding the provisions of that scheme, or
- (b) for securing that any development permitted by the existing scheme may be controlled,

he may by order suspend the provisions of the existing scheme pending the coming into operation of the revoking or varying scheme; and any such order may suspend the provisions of the scheme either as respects the whole of the area to which the revoking or varying scheme is to apply or as respects any part thereof specified in the order, and either as respects all development or as respects development of any class so specified.

(2) Where the provisions of an existing scheme are suspended by virtue of an order under this section, then, notwithstanding anything in subsection (9) of section ten of the Town and Country Planning (Scotland) Act, 1932, the provisions of the Town and Country Planning (Scotland) Acts, 1932 and 1943, with respect to the control of interim development shall, as from the date on which the order comes into operation apply to development to which the order relates and shall so apply as if the resolution had taken effect on that date; and in relation to any such development the material date for the purposes of the revoking or varying scheme shall be the date on which the order comes into operation or such later date as may be specified in that scheme, but without prejudice to the proviso to the definition of "the material date" contained in section fifty-two of the Town and Country Planning (Scotland) Act, 1932 (which specifies the material

date in relation to any provision of a scheme which is revoked by a scheme containing the same or a similar provision).

(3) Subject to the foregoing provisions of this section, the provisions of section ten of the Town and Country Planning (Scotland) Act, 1932, shall not apply to a resolution to prepare or adopt a planning scheme revoking an existing scheme, and accordingly subsection (9) of that section shall have effect as if after the word " scheme ", in the third place where that word occurs, there were inserted the words " revoking or ".

PART I.
—cont.

33.—(1) The provisions of the three next succeeding sections shall have effect as respects interim development applications for permission for the interim development, by the person carrying on a statutory undertaking, of land to which this section applies, the revocation or modification of such permission, and the postponement of the consideration of applications for such permission.

Statutory
undertakers :
interim
development
control.

(2) The land to which this section applies is, in relation to any statutory undertaking, land which is used for the purpose of the carrying on of that undertaking, or in which an interest is held for that purpose, other than any such land which is in respect of its nature or situation comparable rather with the generality of land subject to interim development control than with the generality of land which is used, or in which interests are held, for the purpose of the carrying on of statutory undertakings.

(3) Any question arising under any of the three next succeeding sections whether land is land to which this section applies shall be determined by the Secretary of State and the appropriate Minister.

34.—(1) Where the person carrying on a statutory undertaking appeals to the Secretary of State from a decision on an interim development application for permission to develop land to which the last preceding section applies, or such an application made by the person carrying on a statutory undertaking is referred to the Secretary of State, the decision on the appeal or application, as the case may be, shall be given by the Secretary of State and the appropriate Minister:

Statutory
undertakers :
application
for interim
development
permission.

Provided that where, under the enactments regulating the carrying on of the statutory undertaking, the sanction of a government department (other than the Secretary of State) or the Electricity Commissioners is required for the carrying out of the development in question, or for the borrowing or application of moneys to defray the cost thereof, the Secretary of State and the appropriate Minister shall not be required to give a decision on the appeal or application until such sanction has been obtained.

PART I.
—cont.

(2) Where the preceding subsection has effect, and the Secretary of State and the appropriate Minister propose to refuse permission or to grant permission subject to conditions, they shall notify to the person carrying on the undertaking in question the decision which they propose to give, and if within twenty-eight days from the date on which he receives the notification that person makes application to the appropriate Minister in that behalf, the decision shall be embodied in an order made by the Secretary of State and the appropriate Minister.

(3) An order under this section shall be provisional only and shall be of no effect until confirmed by Parliament.

(4) The provisions of the Town and Country Planning (Scotland) Acts, 1932 and 1943, shall apply to a decision given under this section as if it were a decision given by the Secretary of State.

(5) In respect of any decision given under this section refusing permission, or granting permission subject to conditions, the person carrying on the statutory undertaking in question shall be entitled to recover compensation from the interim development authority in accordance with Part I of the Fourth Schedule to this Act.

(6) Section twenty-six of this Act shall apply in relation to obligations of the person carrying on a statutory undertaking the fulfilment of which is rendered impracticable by a decision given under this section as it applies to the obligations referred to in subsection (1) of the said section twenty-six.

(7) Notwithstanding anything in section three of the Town and Country Planning (Interim Development) (Scotland) Act, 1943, a decision given under this section shall not be such as to grant permission for the erection, construction or carrying out of any building or work, or the use of any building or land, for a limited period only.

Statutory
undertakers :
revocation
of interim
development
permission.

35.—(1) Section four of the Town and Country Planning (Interim Development) (Scotland) Act, 1943 (which relates to the revocation and modification of interim development permissions) shall have effect subject to the following provisions of this subsection as respects any permission granted, on an interim development application made by the person carrying on a statutory undertaking, for the development of land to which section thirty-three of this Act applies:—

- (a) the consent required for the making of an order revoking or modifying the permission shall be given by the Secretary of State and the appropriate Minister;

PART I.
—*cont.*

- (b) the power of the Secretary of State to make an order on behalf of an interim development authority shall be exercised by the Secretary of State and the appropriate Minister;
- (c) where the Secretary of State and the appropriate Minister propose to give such a consent or make such an order, they shall notify to the person carrying on the statutory undertaking the fact that they so propose, and afford him an opportunity of objecting to the proposal;
- (d) if any objection is made to the giving of such a consent and not withdrawn, the consent shall be embodied in an order which shall be provisional only and shall be of no effect until confirmed by Parliament;
- (e) if any objection is made to the making of such an order and not withdrawn, the order shall be provisional only and shall be of no effect until confirmed by Parliament;
- (f) the person carrying on the undertaking shall be entitled to recover compensation from the interim development authority in accordance with Part I of the Fourth Schedule to this Act.

(2) Section twenty-six of this Act shall apply in relation to obligations of the person carrying on a statutory undertaking the fulfilment of which is rendered impracticable by the revocation or modification of any such permission as is mentioned in the preceding subsection as it applies to the obligations referred to in subsection (1) of the said section twenty-six.

36.—(1) The power conferred by section two of the Town and Country Planning (Interim Development) (Scotland) Act, 1943, to postpone the consideration of an interim development application shall not be exercisable as respects applications made by the person carrying on a statutory undertaking for permission to develop land to which section thirty-three of this Act applies, in relation to such an application made after the expiration of five years from the commencement of this Act, or in relation to such an application made before the expiration of the said five years so as to postpone the consideration thereof beyond the expiration of the said five years.

Statutory
undertakers:
postponement
of interim
development
applications.

(2) Without prejudice to the preceding subsection, where the person carrying on a statutory undertaking makes an interim development application for permission to develop land to which section thirty-three of this Act applies, he may at the time of making the application require that the power

PART I.
—cont.

to postpone consideration of the application shall be exercisable by the Secretary of State and the appropriate Minister; and where such a requirement is made the said power shall be exercisable accordingly, and—

- (a) the references in subsection (2) of section two of the said Act of 1943 to the interim development authority shall be construed as references to the Secretary of State and the appropriate Minister;
- (b) the references in subsections (2) and (3) of the said section two to a notice of postponement, and to the service thereof in the prescribed manner, shall be construed as references to written notification of the decision of the Secretary of State and the appropriate Minister to postpone consideration of the application, and to the giving of the notification to the applicant.

Interim
development
orders : exclu-
sion of per-
mission in
particular
areas or
particular
cases.

37. Any interim development order made under section ten of the Town and Country Planning (Scotland) Act, 1932, being an order which itself permits any development of land, may provide for enabling directions to be given thereunder, either by the Secretary of State or by the interim development authority, excluding the permission so granted either in relation to the carrying out of development in any particular area or in relation to the carrying out of any particular development.

Suspension of
byelaws and
other enact-
ments :
additional
powers.

52 & 53 Vict.
c. 72.
55 & 56 Vict.
c. 55.
3 Edw. 7.
c. 33.
15 & 16 Geo. 5.
c. 68.

38.—(1) The power conferred by subsection (8) of section ten of the Town and Country Planning (Scotland) Act, 1932, to authorise by an interim development order the suspension of enactments contained in local Acts and of orders, byelaws or regulations shall include power to provide for suspending the operation of any enactment contained in subsection (1) of section thirty-two of the Public Health (Scotland) Act, 1897, section one hundred and fifty-eight of the Burgh Police (Scotland) Act, 1892, as extended by subsection (2) (h) of section one hundred and four of the Burgh Police (Scotland) Act, 1903, or section five of the Roads Improvement Act, 1925, as applied to Scotland by section twelve of that Act.

(2) Where the Secretary of State is satisfied that it is expedient so to do for the purpose of securing the carrying out of any development in conformity with the provisions of a planning scheme, he may, upon application in that behalf made to him by the responsible authority, by order relax in relation to that development any enactment, order, byelaw or regulation for the suspension of which provision may be made under the said subsection (8) as amended by this section.

39.—(1) A joint committee may be appointed under section three of the Town and Country Planning (Scotland) Act, 1932, or constituted by an order under section four of that Act, for any purpose connected with the preparation of a planning scheme, or with any matter preliminary to the preparation of such a scheme, including the keeping under review of planning schemes, whether operative or not, relating to the areas of any of the constituent authorities or any part thereof.

PART I.
—cont.

Establishment of joint committees for planning purposes.

(2) Any such committee may be empowered to prepare a planning scheme varying a planning scheme relating to the area of any of the constituent authorities or any part thereof, or supplementary to any such scheme.

40. Subsection (3) of section twelve of the Town and Country Planning (Scotland) Act, 1932 (which provides that the provisions of a planning scheme with respect to buildings shall not apply in relation to buildings used for the purposes of agriculture except in certain cases) shall cease to have effect:

Application to agricultural buildings of provisions of planning schemes as to buildings.

Provided that—

- (a) for the purposes of any planning scheme which is in operation at the date of the commencement of this Act, any building erected before that date, being a building to which the scheme would not apply but for this section, shall be treated as an existing building; and
- (b) for the purposes of any planning scheme which comes into operation after the date of the commencement of this Act, any building erected before that date, being a building of any description specified in the said subsection (3), shall be treated as an existing building, and the provisions of section five of the Town and Country Planning (Interim Development) (Scotland) Act, 1943 (which enables interim development authorities to pull down buildings erected after the commencement of that Act otherwise than in accordance with the terms of the interim development order or of permission granted thereunder) shall not apply thereto.

41.—(1) With a view to the guidance of local authorities in the performance of functions under the Town and Country Planning (Scotland) Act, 1932, and this Act in relation to buildings of special architectural or historic interest, the Secretary of State may compile lists of such buildings, or approve,

Designation of buildings of special architectural or historic interest.

PART I.
—*cont.*

either with or without modifications, such lists compiled by other persons or bodies of persons, and may amend any list compiled or approved under this section.

(2) Before compiling or amending any list under this section, or approving any list thereunder either with or without modifications, the Secretary of State shall consult with such persons or bodies of persons as appear to him appropriate as having special knowledge of or interest in buildings of architectural and historic interest.

(3) As soon as may be after any list has been compiled or approved under this section, or any amendments of such a list have been made, a copy of so much of the list as relates to the area of any local planning authority (or, if the list is a list approved subject to modifications, a copy of so much of the list as modified as relates to their area) or of so much of the amendments as relate thereto, as the case may be, certified by or on behalf of the Secretary of State to be a true copy thereof, shall be deposited with the clerk of the local planning authority.

(4) As soon as may be after the inclusion of any building in a list under this section, whether on the compilation or approval of the list or by the amendment thereof, or as soon as may be after any such list has been amended by the exclusion of any building therefrom, the Secretary of State shall serve a notice on every owner and occupier of the building stating that the building has been included in, or excluded from, the list, as the case may be.

Preservation
of buildings
of special
architectural
or historic
interest.

42.—(1) The power of a local authority under section seventeen of the Town and Country Planning (Scotland) Act, 1932, to prohibit the demolition of any building of special architectural or historic interest shall include power to make an order directing that without the consent of the authority the building shall not, in any way prohibited by the order, be altered or extended.

(2) In accordance with the preceding subsection, the power of a local authority to vary an order under the said section seventeen shall include power as respects any order made under that section (whether before or after the commencement of this Act) by a subsequent order thereunder to vary the order by adding thereto such a direction as is mentioned in the preceding subsection.

(3) An order giving or adding such a direction as aforesaid shall not be made by the authority or approved by the Secretary of State unless the authority or the Secretary of

State, as the case may be, are or is satisfied that the alteration or extension of the building in the way prohibited would seriously affect the character of the building.

PART I.
—cont.

(4) Subsection (2) of the said section seventeen (under which an order prohibiting the demolition of a building is of no effect until approved by the Secretary of State, and the Secretary of State is required to consider representations of the owner of the building before approving such an order) shall apply to an order giving or adding such a direction as aforesaid, and subsection (3) of the said section seventeen (which provides for an appeal to the Secretary of State in certain cases) shall have effect as if the reference to the demolition of a building included a reference to the alteration and to the extension thereof.

(5) No person shall execute, or cause or permit to be executed, any work for the purpose of demolishing a building to which this subsection applies, that is to say, a building included in a list compiled or approved under the provisions of the last preceding section, not being a building as respects which an order under the said section seventeen is for the time being in force or a building falling within subsection (5) of that section (which relates to ancient monuments and certain other buildings), or for the purpose of altering or extending a building to which this subsection applies in any way which would seriously affect the character thereof, unless at least two months before the work is executed notice in writing has been given to the local planning authority of the proposed demolition, alteration or extension:

Provided that nothing in this subsection shall render unlawful the execution of any such work as aforesaid which is urgently necessary in the interests of safety or health, or for the preservation of the building or of neighbouring property, so long as notice is given as aforesaid as soon as may be after the necessity for the work arises.

(6) Where a local planning authority receive a notice under the last preceding subsection, they shall as soon as may be send a copy of the notice to the Secretary of State and to such other persons or bodies of persons as may be specified by the Secretary of State either generally or as respects the building in question.

(7) If any owner of a building executes, or causes or permits to be executed, any work for the purpose of demolishing, altering or extending the building in contravention of an order in force under the said section seventeen, or if any person contravenes the provisions of subsection (5) of this section,

PART I.
—*cont.*

the said owner or person, as the case may be, shall be liable on summary conviction to a fine not exceeding fifty pounds, and the court by whom he is convicted may in addition order him to pay such sums as the court think just for the purpose of restoring the building, so far as may be, to its former state.

(8) Where an order under the said section seventeen has come into operation as respects any building, the authority by whom the order was made may at any time serve notice of the order on any person not being an owner of the building, and where such notice has been served the provisions of the last preceding subsection shall apply in relation to the person on whom it was served as if he were an owner of the building.

(9) A local authority having power to make an order under the said section seventeen as respects any building—

- (a) may, with the consent of the Secretary of State, acquire by agreement the building and any land comprising or contiguous or adjacent to it which appears to the authority and the Secretary of State to be required for maintaining it or the amenities thereof, or for affording access thereto, or for the proper control or management thereof;
- (b) if an order under the said section seventeen is in force as respects the building and it appears to the authority and the Secretary of State that reasonable steps required for properly maintaining the building will not be taken unless the powers of this paragraph are exercised, may be authorised to purchase the building and any such land as aforesaid compulsorily, by means of an order made by the authority and submitted to the Secretary of State and confirmed by him in accordance with the provisions of Part I of the Second Schedule to this Act.

(10) A local authority shall have power, as respects any land acquired by them under this section, to repair, maintain and insure any buildings or works on the land and generally to deal therewith in a proper course of management, and may with the consent of the Secretary of State dispose of any land so acquired in any manner which appears to the authority and the Secretary of State expedient for, or consistent with, securing the object for which the land was acquired.

Subsections (9) and (10) of section eighteen of this Act shall apply in relation to the disposal of land under this section as they apply in relation to the disposal of land under that section.

43. Where, in accordance with paragraph (c) of subsection (1) of section twelve of the Town and Country Planning (Scotland) Act, 1932, provision is made by a planning scheme for enabling the responsible authority to regulate the design or external appearance of buildings, any appeal under that subsection from a decision of the responsible authority shall, if the scheme so provides, lie to the Secretary of State instead of to the sheriff or a special tribunal, and accordingly the said subsection shall have effect as if, after the word "sheriff" there were inserted the words "or to the Secretary of State".

PART I.
—cont.

Appeals in respect of design or external appearance of buildings.

44.—(1) Any planning scheme which makes provision for the purposes set out in paragraph (ii) (c) of subsection (2) of section nineteen of the Town and Country Planning (Scotland) Act, 1932 (that is to say, for securing that new buildings may be erected on the sites of existing and certain other buildings if commenced within two years after the destruction or demolition of the previous buildings or within such longer period as the responsible authority may permit) shall have effect in relation to any building destroyed or demolished (whether before or after the commencement of this Act) during the war period, as if for any reference therein to the period of two years after the destruction or demolition of the previous building there were substituted a reference to the period ending two years after the expiration of the war period, or, in the case of a scheme which comes into operation after the expiration of the war period, to the period ending two years after the date on which the scheme comes into operation.

Extension as respects war period of protection for existing buildings and uses.

(2) The provisions of paragraph (ii) (d) of subsection (2) of the said section nineteen (which relates to the use of buildings permitted in accordance with paragraph (ii) (c) of that subsection) and of subsections (3) and (4) of that section (which enable the responsible authority to control such buildings and uses upon payment of compensation) and any provisions included in the scheme in accordance with those provisions, shall apply in relation to any buildings the erection of which is permitted by virtue of this section as they apply to buildings permitted in accordance with paragraph (ii) (c) of the said subsection (2).

(3) Where, at any time during the war period (whether before or after the commencement of this Act) the existing use of any building has been discontinued—

(a) by reason of the occurrence to the building of war damage;

PART I.
—cont.

- (b) by reason of possession of the building having been taken in the exercise or purported exercise of emergency powers, or by an authority by whom, at a time at which, and for a purpose for which, possession of the building could have been so taken;
- (c) in consequence of any arrangement for the concentration of production approved, or of any order for that purpose made, by the Board of Trade in the exercise or purported exercise of such powers;
- (d) by reason of the entry of the occupier of the building into whole-time service in the armed forces of the Crown or in the merchant navy or the mercantile marine or in a civil defence force within the meaning of the National Service Acts, 1939 to 1942, or, in the case of a woman, in any of the capacities mentioned in the First Schedule to the Reinstatement in Civil Employment Act, 1944; or
- (e) by reason of such other circumstances as may be prescribed,

7 & 8 Geo. 6.
c. 15.

no account shall be taken for the purposes of proviso (i) to the definition of "existing use" in section fifty-two of the Town and Country Planning (Scotland) Act, 1932 (which provides that no subsequent use of a building is to be deemed to be an existing use if the existing use has been discontinued for a period of eighteen months) of any time during which the resumption of the existing use of the building is or has been prevented either as mentioned in paragraphs (a) to (e) of this subsection or by reason of the refusal by the Secretary of State on appeal of an interim development application for permission to resume that use.

(4) In this section—

- (a) the expression "the war period" means the period beginning with the third day of September, nineteen hundred and thirty-nine and ending with the expiration of the Emergency Powers (Defence) Act, 1939;
- (b) the expression "emergency powers" means powers conferred by Defence Regulations, by section fifty-two of the Telegraph Act, 1863, or by section seven of the Air Navigation Act, 1920, or exercisable by virtue of the prerogative of the Crown,

2 & 3 Geo. 6.
c. 62.26 & 27 Vict.
c. 112.
10 & 11 Geo. 5.
c. 80.

and the reference in subsection (3) of this section to the refusal by the Secretary of State on appeal of an interim development application shall be construed as including a

reference to the refusal by him of an interim development application referred to him under subsection (1) of section six of the Town and Country Planning (Interim Development) (Scotland) Act, 1943, and to the refusal by the Secretary of State and the appropriate Minister of an application made by the person carrying on a statutory undertaking.

PART I.
—cont.

- 45.—(1) Any power conferred by a planning scheme to grant permission for any development shall include power—
- (a) where, upon application for such permission made during the continuance in force of the Emergency Powers (Defence) Act, 1939, the responsible authority are satisfied—
- (i) that having regard to the purposes for which development is required, and to the circumstances prevailing at the time, it is desirable to grant the permission; but
- (ii) that it is inexpedient in the interests of the scheme that the development should be permitted without limit of time,
- to grant the permission so as to remain in force for such period as may be specified therein;
- (b) where permission has been so granted, and the responsible authority are satisfied, upon application made as aforesaid and before the expiration of the period specified in the permission, that it is desirable to permit the development for a further period, to extend the period so specified.

(2) If, after the expiration of the period for which permission has been granted therefor under this section, any building or use is maintained or continued, the provisions of the Town and Country Planning (Scotland) Act, 1932, and of the scheme shall apply as if the permission had not been granted and as if the building had been erected, or the use begun, at the expiration of the said period by the person then entitled to possession of the land.

(3) Where, in exercise of any such power as aforesaid, the responsible authority have, at any time after the commencement of the Emergency Powers (Defence) Act, 1939, and before the commencement of this Act, purported to grant permission for any development so as to remain in force for a specified period, the provisions of the last preceding subsection shall apply as if the permission had been granted under this section.

PART I.
—cont

(4) Any reference in this section to the responsible authority shall, in a case where an appeal is taken to the Secretary of State under the provisions of the scheme, be construed as a reference to the Secretary of State.

Miscellaneous Provisions relating to Part I.

Provision as to
loans by the
Public Works
Loan Com-
missioners.
38 & 39 Vict.
c. 89.

46. The power of the Public Works Loan Commissioners to make loans under section nine of the Public Works Loans Act, 1875, shall include power to make loans to a local planning authority or a local highway authority for the purpose of the discharge by them of any of their functions under this Part of this Act.

Subsidy under
2 & 3 Geo. 6.
c. 3, as respects
housing for
persons
displaced in
exercise of
powers of
this Part.

47.—(1) In paragraph (a) of subsection (5) of section one of the Housing (Financial Provisions) (Scotland) Act, 1938 (which specifies, as the subject matter to which that section applies for the purposes of the Exchequer contributions therein mentioned, housing accommodation rendered necessary as mentioned in that subsection) there shall be inserted, at the end of sub-paragraph (ii), the words " or by displacements from houses as to which the Department are satisfied that they are unfit for human habitation and not capable of being rendered fit for human habitation at reasonable expense, being displacements occurring in the carrying out in connection with the purpose mentioned in subsection (1) of section one or in subsection (1) of section nine of the Town and Country Planning (Scotland) Act, 1945, of redevelopment of land which a local planning authority or a local highway authority or a Minister have or has acquired under Part I of that Act."

25 & 26 Geo. 5.
c. 41.

(2) If the Secretary of State is satisfied as respects any area of land (being the whole or any part of an area of land acquired by a local planning authority under section nine of this Act) that the conditions specified in subsection (1) of section thirteen of the Housing (Scotland) Act, 1935, exist in that area and the land is appropriated by the local planning authority for the purpose of providing housing accommodation under the Housing (Scotland) Acts, 1925 to 1944, or is disposed of by them to another local authority for that purpose, then for the purposes of proviso (a) to subsection (2) of section one of the Housing (Financial Provisions) (Scotland) Act, 1938 (which provides for the payment of additional Exchequer contributions in certain cases) the area shall be deemed to be a redevelopment area.

20 & 21 Geo. 5.
c. 40.

(3) If the Secretary of State is satisfied as respects any such area of land as aforesaid that the conditions in the area are such that the land therein could have been acquired under Part I of the Housing (Scotland) Act, 1930, as being land in,

or adjoining, or surrounded by a clearance area, and that the land includes dwelling houses or other premises which are neither unfit for human habitation nor injurious or dangerous to health, then for the purposes of proviso (a) to subsection (2) of section one of the said Act of 1938 the dwelling houses or other premises shall be deemed to have been purchased under Part I of the Housing (Scotland) Act, 1930, as being such dwelling houses or other premises as are mentioned in paragraph (ii) of the said proviso.

PART I.
—cont.

(4) Any increase attributable to this section in the sums payable out of moneys provided by Parliament under section three of the said Act of 1938 shall be payable out of moneys so provided.

48. Nothing in this Act shall authorise the execution of any works whether of construction, demolition or alteration on, over or under tidal lands below high-water mark of ordinary spring tides, except with the consent of any persons whose consent would have been required if this Act had not been passed, and except in accordance with such plans and sections and subject to such restrictions and conditions as, previous to such works being commenced, have been approved by the Minister of War Transport.

49.—(1) Where a Minister or a local planning authority or a local highway authority is or are authorised to purchase any land compulsorily under this Part of this Act, or has or have under consideration the purchase of any land as aforesaid, an officer of the Valuation Office or any person authorised in writing by the Minister or authority may at all reasonable times, on producing, if so required, evidence of his authority in that behalf, enter on the land, for the purpose of surveying or estimating the value of the land.

Power of
entry for
purposes of
survey and
valuation.

(2) An officer of the Valuation Office or any person authorised in writing by the Secretary of State may at all reasonable times, on producing, if so required, evidence of his authority in that behalf, enter on land for the purpose of surveying it or estimating its value in connection with any proposals relating to the land submitted or to be submitted under section seven of this Act.

(3) Notwithstanding anything in the preceding subsections, admission shall not be demanded as of right to any land which is occupied, unless twenty-four hours' notice of the intended entry has been given to the occupier.

(4) If any person obstructs such an officer or other person in the exercise of any power conferred on him by this section, he shall be liable on summary conviction to a fine not exceeding twenty pounds.

PART I.
—*cont.*
Provisions as
to local
inquiries.

50.—(1) For the purposes of the execution of his powers and duties under this Act, a Minister may cause to be held such local inquiries as are directed by this Act and such other local inquiries as he may think fit; and the provisions of this section shall apply to any inquiry so held.

(2) The Minister shall appoint a person to hold the inquiry and to report thereon to him.

(3) The person appointed to hold the inquiry shall notify any person who has lodged, and has not withdrawn, objections in relation to any matter in question at the inquiry, and shall publish in such newspaper or newspapers as the Minister may direct a notice, of the time when and the place where the inquiry is to be held.

(4) The person appointed to hold the inquiry may, on the motion of any party thereto or of his own motion, serve a notice in writing on any person requiring him to attend at the time and place set forth in the notice to give evidence or to produce any books or documents in his custody or under his control which relate to any matter in question at the inquiry:

Provided that—

- (i) no person shall be required in obedience to such a notice to attend at any place which is more than ten miles from the place where he resides unless the necessary expenses are paid or tendered to him; and
- (ii) nothing in this subsection shall empower the person appointed to hold the inquiry to require any person to produce any book or document or to answer any question which he would be entitled, on the ground of privilege or confidentiality, to refuse to produce or to answer if the inquiry were a proceeding in a court of law.

(5) The person appointed to hold the inquiry may administer oaths and examine witnesses on oath and may accept, in lieu of evidence on oath by any person, a statement in writing by that person.

(6) Any person who refuses or wilfully neglects to attend in obedience to a notice under subsection (4) of this section or to give evidence or who wilfully alters, suppresses, conceals, destroys, or refuses to produce, any book or document which he may be required to produce by any such notice shall be liable on summary conviction to a fine not exceeding twenty pounds or to imprisonment for a period not exceeding three months.

(7) The Minister may make orders as to the expenses incurred by the parties to the inquiry and as to the parties by whom such expenses shall be paid.

(8) Any order of the Minister under subsection (7) of this section requiring any party to pay expenses may be enforced in like manner as a recorded decree arbitral.

PART I.
—cont

(9) In this section the expression "Minister" means the Secretary of State, or any other Minister authorised under this Act to hold a local inquiry.

51.—(1) On the date on which notice to treat for the purposes of a purchase under this Part of this Act is served in respect of any interest in land that has sustained war damage any of which has not been made good at that date, or as soon as may be after that date, the purchasing authority shall notify the War Damage Commission that such a notice to treat has been served in respect of an interest therein:

Notification
of purchases
of war-
damaged land
to War
Damage
Commission.

Provided that this subsection shall not apply to a notice to treat deemed by virtue of the Sixth Schedule to this Act to have been served, but when the purchasing authority under a purchase order providing for expedited completion record the order in the appropriate Register of Sasines, they shall notify the Commission of that action having been taken.

(2) If an authority who are authorised by an order under this Part of this Act to purchase compulsorily land which has sustained war damage enter into an agreement for the purchase of an interest in the land, and at the date on which the agreement is made any of the damage has not been made good, the authority shall, on that date or as soon as may be after that date, notify the War Damage Commission that they have entered into an agreement for the purchase of an interest therein.

52.—(1) Any notice or other document required or authorised to be served or given under this Act may be served or given either—

Service of
notices.

- (a) by delivering it to the person on whom it is to be served or to whom it is to be given; or
- (b) by leaving it at the usual or last known place of abode of that person, or, in a case in which an address for service has been furnished, at that address; or
- (c) by sending it in a prepaid registered letter addressed to that person at his usual or last known place of abode, or, in a case in which an address for service has been furnished, at that address; or
- (d) in the case of a person on whom the notice is required by this Act to be served as being a person appearing from the valuation roll to have an interest in land, by sending it in a prepaid registered letter addressed to that person at his address as entered in the valuation roll; or

PART I.
—cont.

- (e) in the case of an incorporated company or body, by delivering it to the secretary or clerk of the company or body at their registered or principal office or sending it in a prepaid registered letter addressed to the secretary or clerk of the company or body at that office; or
- (f) in the case of the War Damage Commission, by delivering it to an officer of the Commission at any office of the Commission, or by sending it in a prepaid registered letter addressed to the Commission at any office of the Commission:

Provided that a notice or other document that is required or authorised to be served on or given to a person as having an interest in, or being an occupier of, any premises shall be deemed to be duly served on that person,—

- (i) where he is a person having an interest and his name cannot be ascertained after reasonable inquiry, or where he is an occupier, if it is addressed to him by the description of “the owner” or “the occupier” as the case may be, of the premises describing them) and delivered, left or sent as mentioned in paragraph (a), (b) or (c) of this section;
- (ii) where he is a person having an interest and his address cannot be ascertained after reasonable inquiry, or where he is an occupier, if the notice or other document (addressed to him either by name or in accordance with paragraph (i) of this proviso, and marked in such manner as may be prescribed for securing that it shall be plainly identifiable as a communication of importance) is sent in a prepaid registered letter to those premises and is not returned to the authority sending it, or is delivered to some person on those premises, or is affixed conspicuously to some object on those premises;

and where a notice or other document is required to be served on or given to all persons having interests in, or being occupiers of, premises comprised in any land, and any of that land appears to the authority required to serve or give the notice or other document to be unoccupied, it shall be deemed to be duly served on all persons having interests in, and of all occupiers (if any) of, premises comprised in the land so appearing to the authority (other than an owner who in accordance with the provisions of this Act in that behalf has furnished the authority with an address for service of the notice on him) if it is addressed to “the owners and any occupiers” of the land so appearing (describing it) and marked as aforesaid and is affixed conspicuously to some object on that land.

(2) Where a notice or other document has been served or given by delivering it to the person on whom it is to be served or to whom it is to be given, or by delivering it in pursuance of paragraph (e) of the foregoing subsection, the notice or document shall be deemed to have been served or given at the time of such delivery, and in any other case shall be deemed to have been served or given on the expiration of forty-eight hours after the time at which it was left, sent or affixed as aforesaid.

PART I.
—cont.

PART II.

COMPENSATION IN CONNECTION WITH ACQUISITION OF LAND FOR PUBLIC PURPOSES.

53.—(1) Compensation for the compulsory purchase of an interest in land by a government department or a local or public authority within the meaning of the Acquisition of Land (Assessment of Compensation) Act, 1919, compensation to be estimated in connection with such a purchase for damage sustained by reason of the severing of land the subject thereof from other land held therewith or otherwise injuriously affecting such other land, and compensation under section six of the Railways Clauses Consolidation (Scotland) Act, 1845, in respect of land injuriously affected by the execution of works on land acquired by such a department or authority, shall, except in the case of compensation assessed on the basis specified in rule (5) of the rules set out in section two of the said Act of 1919, be assessed subject to the rule following, that is to say—

Assessment of compensation in connection with acquisition of land for public purposes by reference to 1939 prices.

The value of any interest in land purchased pursuant to a notice to treat served at any time within the period of five years from the seventeenth day of November, nineteen hundred and forty-four, the amount of any damage sustained by reason of severance or other injurious affection compensation for which it is to be estimated in connection with a purchase of an interest in land pursuant to such a notice, and the amount of any damage sustained by reason of other land being injuriously affected by the execution of works which either is sustained or the amount of which falls to be ascertained at any time within that period, shall be ascertained by reference to prices current at the thirty-first day of March, nineteen hundred and thirty-nine, on the assumption that the interest had at that date been subsisting as it was in fact subsisting at the time of the service of the notice to treat, and that the land in which the interest subsisted, and any such other land, had been at that date in the

PART II.
—cont.

state in which it in fact was at the time of service of the notice to treat.

(2) The rule set out in the preceding subsection shall, in its application to tenancies, to land capable of being redeveloped in combination with other land, to dwelling-houses to which the Rent and Mortgage Interest (Restrictions) Acts, 1920 to 1925, apply, and to agricultural holdings, have effect subject to the provisions of the Seventh Schedule to this Act.

(3) Compensation for disturbance shall not in any case be assessed at any greater amount than that at which it would have fallen to be assessed if this section had not been enacted.

Supplement to
compensation
in case of
owner-
occupiers.

54.—(1) Where the person entitled to compensation assessed subject to the rule set out in subsection (1) of the last preceding section for the purchase of an interest in land consisting of or comprising a building (not being agricultural property) or consisting of or comprising agricultural property (that is to say, agricultural land or agricultural buildings as defined in this section, or a farmhouse) is an owner-occupier, he shall be entitled to receive from the purchasing authority, as a supplement to that compensation, such sum, if any, not exceeding the maximum hereinafter specified, as may be reasonable having regard to the extent to which, in all the circumstances of his occupation, he is affected by the purchase of the interest.

(2) The maximum for the sum which may be paid under this section in respect of an interest in land as consisting of or comprising a building shall be—

(a) where the interest in question is that of the proprietor of the *dominium utile*, thirty per cent. of the value of the building ascertained by reference to prices current at the thirty-first day of March, nineteen hundred and thirty-nine;

(b) where the interest in question is that of a tenant, the amount by which the value of the tenancy in the building ascertained by reference to prices current at the said thirty-first day of March falls short of the value of the tenancy in the building ascertained by reference to prices thirty per cent. greater than those current at that date.

(3) The maximum for the sum which may be paid under this section in respect of an interest in land as consisting of or comprising agricultural property shall be the amount (if any) by which—

(a) the value of the interest in the agricultural property ascertained by reference to prices current at the said thirty-first day of March, falls short of

- (b) the value of the interest in the agricultural property ascertained by reference to prices thirty per cent. greater than those current at that date and on the assumption that that property had been at that date subject to a permanent restriction to use as agricultural property within the meaning of this section.

(4) In making any valuation of a building, of a tenancy in a building or of an interest in agricultural property, which is required for fixing either of the said maxima it shall be assumed that the building or property had been at the thirty-first day of March, nineteen hundred and thirty-nine, in the state in which it in fact was at the time of service of the notice to treat, except that, in a case in which the building or property has sustained war damage any of which has not been made good at that time and in respect of which the appropriate payment under the War Damage Act, 1943, would be a payment of cost of works, it shall be assumed that the building or property had been on the said thirty-first day of March in the state in which it was immediately before the occurrence of the damage. ^{6 & 7 Geo. 6. c. 21.}

(5) The person entitled to compensation for the purchase of an interest in land consisting of or comprising a building or agricultural property shall be deemed for the purposes of this Part of this Act to be an owner-occupier if any of the following conditions are satisfied, and not otherwise, that is to say—

- (a) if he is in occupation of the building or property at the time of service of the notice to treat;
- (b) in the case of a building or property so damaged at that time as not to be fit for occupation, if he was in occupation thereof when the damage occurred;
- (c) in the case of a building or property of which possession has been taken without other title by virtue of any enactment or by an authority by whom, and in circumstances in which, possession thereof could have been so taken, and has not been given up before that time, if he was in occupation thereof when possession was so taken; or
- (d) if—
 - (i) the title under which the building or property is held at that time is such that he then has the right to enter into occupation thereof or will be in a position to obtain that right within five years from that time, and
 - (ii) it was at that time his intention, subject to its being possible for him so to do, to enter into

PART II.
—cont.

occupation of the building or property within the said five years, or, if it is so damaged as not to be fit for occupation, to cause it to be restored for his occupation, or to enter into occupation of premises to be substituted therefor, within the said five years.

(6) For the purposes of the last preceding subsection—

- (a) references to the person entitled to the compensation shall, where that person holds as trustee or otherwise for the benefit of another or subject to the directions of another, be construed subject to such adaptations as may be prescribed;
- (b) references to occupation of a building or property include references to occupation of a part thereof, so however that a person shall not be treated under this paragraph as in occupation of a building or property by virtue of his occupying a part thereof if he occupies it wholly or mainly in connection with the management, supervision or control of the building or property as a whole.
- (c) a person shall be treated as in occupation of a building or property if it is in the occupation of a person in his employment for the purposes of that employment, so however that a person shall not be treated under this paragraph as in occupation of a building or property by virtue of any occupation thereof by a person employed by him as caretaker of that building or property;
- (d) no regard shall be had to any impediment to a right to enter into occupation arising from the subsistence of a tenancy which is subject to a right on the part of the landlord to terminate it by notice at or before the end of such one of the periods specified in subsection (2) of section one of the Validation of War-time Leases Act, 1944, as is appropriate to the lease or agreement, or arising from the operation of the Rent and Mortgage Interest Restrictions Acts, 1920 to 1939 (or of any enactment amending or replacing any enactment in those Acts), or arising from the subsistence by virtue of any enactment of a right to possession of land without other title thereto;
- (e) no regard shall be had to occupation or intended occupation of a building or property entered into, or intended to be entered into, with a view to rendering a sum payable under this section in a case in which it would not otherwise have been payable.

(7) In this section the following expressions have the meanings hereby assigned to them respectively, that is to say—

PART II.
—*cont.*

“ agricultural land ” means any land used for agricultural or pastoral purposes only, or as wood-lands, market gardens, orchards, allotments, or allotment gardens, gardens exceeding one-quarter acre attached to a house occupied as a dwelling by a person of the labouring classes and any land exceeding one-quarter acre used for the purpose of poultry farming, but does not include any land occupied together with a house as a park, garden or pleasure ground, or any land kept or preserved mainly or exclusively for sporting purposes; and the expression “ agricultural purposes ” shall be construed accordingly;

“ agricultural buildings ” means buildings (other than dwelling houses) occupied together with agricultural land, or being or forming part of a market garden, and in either case used solely in connection with agricultural operations thereon;

“ farmhouse ” means a house used as the dwelling-house of a person who is primarily engaged in carrying out or directing agricultural operations on land in the neighbourhood of the house.

55. Where compensation assessed subject to the rule set out in subsection (1) of section fifty-three of this Act is for the purchase of an interest in land which, after the thirty-first day of March, nineteen hundred and thirty-nine, and before the time of service of the notice to treat, has been improved by the erection thereon of a building or by improvements made to a building or to agricultural land comprised therein, the person entitled to the compensation shall be entitled to receive from the purchasing authority, as a supplement to that compensation, such sum, if any, by way of addition to the value, ascertained by reference to prices current at the said thirty-first day of March, of the purchased interest in the land so far as attributable to the improvements, as may be reasonable having regard to all the circumstances, including in particular the cost of the improvements, any provision which may have been made for the payment of any of the cost thereof out of public moneys, and any increased returns or increased prices in respect of, or of products of, work done on the improved land in so far as it appears that the increase was intended to make provision for recovery of capital applied in making the improvements apart from provision for depreciation.

Supplement to
compensation
in case of
improvements

PART II.

—*cont.*

Supplemental
provisions
relating to
the two
preceding
sections.

56.—(1) On a claim being made for payment of a sum under either of the two last preceding sections as a supplement to any compensation, the purchasing authority may settle the claim in agreement with the person entitled to the compensation, and in default of agreement the claim shall be referred to and determined by an arbiter to be appointed in accordance with the provisions of the Acquisition of Land (Assessment of Compensation) Act, 1919:

Provided that—

- (a) the sheriff shall have jurisdiction to hear and determine any question arising on such a claim whether the claimant is a person who is to be deemed for the purposes of this Part of this Act to be an owner-occupier; and
- (b) in lieu of the provisions of the said Act of 1919 as to the statement of special cases, the arbiter may at any stage of the proceedings before him, and shall if so directed by the sheriff, state in the form of a special case for the opinion of the sheriff any question of law arising in the course of the proceedings, and may state his award as to the whole or part thereof in the form of a special case for the opinion of the sheriff.

The opinion of the sheriff on any question brought before him under this subsection shall be final, unless either party appeals to the Court of Session, from whose decision no appeal shall lie.

(2) The Treasury may make regulations prescribing the manner in which, and matters by reference to which, any valuation required for the purposes of the determination of a claim for payment of a sum under either of the two last preceding sections is to be made.

(3) Provision may be made by an order made by the Treasury and approved by a resolution of each House of Parliament for substituting, in view of any circumstances arising since the passing of this Act, for any reference in section fifty-four of this Act to thirty per cent. a reference to such higher or lower percentage as may be specified in the order, either generally or as respects any particular provision of that section.

An order or orders may be made under this subsection as respects such period or respective periods as appear to the Treasury to be appropriate, and any such order shall have effect (if approved as aforesaid) in relation to interests in respect of which notices to treat are served during the period as respects which the order is made.

PART II.
—cont.

(4) Where the person entitled to any compensation would apart from this provision be entitled to receive a sum as a supplement to that compensation under both of the two last preceding sections, he shall be entitled to receive whichever of those sums is the greater, to the exclusion of the other.

(5) A sum payable under either of the two last preceding sections as a supplement to any compensation shall be held, and disposed of in like manner as if it had formed part of the compensation, and, where the compensation carries interest, shall carry interest at the rate and from the date at and from which interest on the compensation is payable.

57.—(1) The provisions of the Eighth Schedule to this Act shall have effect as to the ascertainment of the compensation for the compulsory purchase of an interest in the whole of the land in a hereditament within the meaning of the War Damage Act, 1943, the value of which is required by that Act to be ascertained by reference to its state after war damage. Ascertainment of compensation for purchase of land valued under the War Damage Act, 1943.

(2) In this section, and in the Eighth Schedule to this Act, references to the compensation for the compulsory purchase of an interest shall be construed as references to the compensation payable apart from any supplement under section fifty-four or fifty-five of this Act.

58.—(1) The rate of interest for any period after the commencement of this Act on compensation which fell or falls, in default of agreement, to be ascertained in accordance with the Acquisition of Land (Assessment of Compensation) Act, 1919 (whether as originally enacted or as amended by this Act), in respect of land compulsorily purchased on which entry has been made before the payment of the compensation shall, in lieu of being the rate of five per cent. specified in section eighty-four of the Lands Clauses Consolidation (Scotland) Act, 1845, be four per cent. per annum or such other rate as may be prescribed by regulations made by the Treasury under this section. Power to prescribe rate of interest payable where entry made before payment of compensation.

(2) The Treasury may from time to time make regulations prescribing the rate at which such interest as aforesaid for the period after the coming into force of the regulations, and before the coming into force of any subsequent regulations made under this section, is to be payable.

PART III.

GENERAL.

59.—(1) In this Act, except where the context otherwise requires, the expression "prescribed" means prescribed by regulations made by the Secretary of State. Regulations.

PART III.
—cont.

(2) Any regulations made under this Act shall be laid before Parliament as soon as may be after they are made, and if either House of Parliament within the period of forty days beginning with the day on which the regulations are laid before that House resolves that the regulations be annulled the regulations shall thereupon become void, without prejudice, however, to the validity of anything previously done thereunder or to the making of new regulations.

In reckoning any such period of forty days as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

Expenses of,
and borrowing
by, local
authorities.

60.—(1) Any expenses incurred by a local planning authority under this Act shall be defrayed as if they were expenses incurred by the authority under the Town and Country Planning (Scotland) Act, 1932; and any expenses incurred by a highway authority under this Act shall be defrayed in like manner as expenses incurred by the authority on highways.

(2) A local authority may borrow for the purposes of this Act in accordance with the provisions of section twenty-three of the Local Government (Scotland) Act, 1929.

(3) Every sum borrowed under this Act shall be repaid within such period as the local authority may, with the consent of the Secretary of State, determine.

(4) Nothing in this Act shall authorise the exercise of any power of borrowing money or the making of any issue of capital without compliance with the requirements of any regulation for the time being in force under the Emergency Powers (Defence) Act, 1939, or of any order made under any such regulation.

Powers of
official arbiter
on references
to him.

61. An official arbiter appointed in accordance with the provisions of the Acquisition of Land (Assessment of Compensation) Act, 1919, to whose determination any matter is referred under this Act shall have the like powers with respect to procedure, costs and the statement of special cases as he has under that Act, except in so far as is otherwise provided by this Act.

Interpretation.

62.—(1) In this Act, except where the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say—

“ appropriate Minister,” in relation to a statutory undertaking, has the meaning assigned to it by section thirteen of this Act;

- “clearing” means preparing land to the prescribed extent for development, including the construction of any prescribed works in the course of so preparing it;
- “development” includes re-development;
- “first local advertisement” means in relation to the publication of a notice as respects any land, the first publication of the notice in a newspaper circulating in the locality where the land is situated, and includes, in relation to a notice so published once only, the publication thereof;
- “Gazette and local advertisement” means, in relation to an application, order or certificate relating to any land, publication in the Edinburgh Gazette and, in each of two successive weeks, in one or more newspapers circulating in the locality in which the land is situated;
- “interim development application” and “interim development authority” have the same meanings as in the Town and Country Planning (Interim Development) (Scotland) Act, 1943;
- “land” includes land covered with water and any interest in land and any servitude or right in or over land;
- “loan charges” means the sums required for the payment of interest on borrowed moneys and for the repayment thereof either by instalments or by means of a sinking fund;
- “local enactment” means an enactment in any local or private Act of Parliament and a provision in a statutory order;
- “local highway authority” means a highway authority other than the Minister of War Transport;
- “local planning authority” means such a council as is mentioned in subsection (1) of section two of the Town and Country Planning (Scotland) Act, 1932, and any council to whom powers and duties have been transferred under subsection (2) of that section;
- “owner,” in relation to any building or land, includes any person who under the Lands Clauses Acts would be enabled to sell and convey the building or land to the promoters of an undertaking, and includes also a lessee under a lease or agreement, the unexpired period of which exceeds three years;
- “planning scheme” means a scheme under the Town and Country Planning (Scotland) Act, 1932, and

PART III.
—cont.
15 & 16 Geo. 6.
c. 17.

includes a town planning scheme under the Town Planning (Scotland) Act, 1925, or any enactment repealed by that Act;

“ purchasing authority ” includes a Minister purchasing under this Act;

“ purchase order providing for expedited completion ” has the meaning assigned to it by subsection (3) of section seventeen of this Act;

“ statutory order ” means an order or scheme made under an Act of Parliament, including an order or scheme confirmed by Parliament;

“ statutory undertaking ” has the meaning assigned to it by section thirteen of this Act;

“ Valuation Office ” means the Valuation Office of the Inland Revenue Department;

“ valuation roll ” means the valuation roll for the year current at the time when the notice is served, or, if the notice is served after the fifteenth day of May and before the first day of October in any year, the valuation roll for the preceding year;

“ war damage ” has the meaning assigned to it by the War Damage Act, 1943;

(2) References in this Act to any other enactment shall, unless the context otherwise requires, be construed as references to that enactment as amended by this Act or by or under any other enactment.

(3) Words in this Act importing a reference to service of a notice to treat shall be construed as including a reference to the constructive service of such a notice which, by virtue of the Sixth Schedule to this Act or of any other enactment, is to be deemed to be served.

Short title
and extent.

63.—(1) This Act may be cited as the Town and Country Planning (Scotland) Act, 1945.

(2) This Act shall extend to Scotland only.

SCHEDULES.

FIRST SCHEDULE.

Sections 1, 22,
25, 26.

PROCEDURE FOR DEALING WITH OBJECTIONS.

1.—(1) The following provisions of this Schedule shall have effect where an objection is duly made to—

- (a) an application for an order under section one of this Act;
- (b) a proposal to make an order under section twenty-two thereof;
- (c) the making of an order under section twenty-five or twenty-six thereof;
- (d) an order authorising a compulsory purchase submitted by a local planning authority or a local highway authority, or prepared in draft by a Minister, in accordance with the provisions of the Second Schedule to this Act;

and is not withdrawn.

(2) An objection shall not be deemed for the purposes of any of the said enactments or of this Schedule to be duly made unless—

- (a) it is made within the time and in the manner specified in the notice required by the relevant enactment referred to in the preceding sub-paragraph, and
- (b) the objection comprises, or there is submitted therewith, a statement in writing of the grounds thereof.

(3) In this Schedule, the expression “the Minister” means the Minister or Ministers having jurisdiction to make or confirm the order in question.

2. Unless the Minister decides apart from the objection not to make or confirm the order, or decides to make a modification agreed to by the person making the objection as meeting the objection, the Minister shall, before deciding whether to make or confirm the order, or what modification if any ought to be made, consider the grounds of the objection as set out in the statement, and may, if he thinks fit, require the person making the objection to submit within a specified period a further statement in writing as to any of the matters to which the objection relates.

3. In so far as the Minister is satisfied, after considering the grounds of the objection as set out in the original statement and any such further statement—

- (a) that the objection relates to a matter which can be dealt with by an arbiter by whom compensation is to be assessed, or
- (b) in the case of an objection to an order authorising a compulsory purchase of land as to which an order under section one

1ST SCH.
—cont.

of this Act is in force, that the objection is made on the ground that the purchase is unnecessary or inexpedient, the Minister may treat the objection as irrelevant for the purpose of his deciding as aforesaid.

4. If after considering the grounds of the objection as set out in the original statement and any such further statement, the Minister is satisfied that he is sufficiently informed, for the purpose of his deciding as aforesaid, as to the matters to which the objection relates, or if where a further statement has been required it is not submitted within the specified period, the Minister may decide as aforesaid without further investigation as to those matters.

5. Subject as mentioned in the two last preceding paragraphs, the Minister shall, before deciding as aforesaid, afford to the person making the objection an opportunity of appearing before and being heard by a person appointed for the purpose by the Minister, and if he avails himself thereof the Minister shall afford an opportunity of appearing and being heard on the same occasion to the authority or other person (if any) making the application or representation or submitting the order in question and to any other persons to whom it appears to the Minister to be expedient to afford it.

6. Notwithstanding anything in paragraphs 2 to 5 of this Schedule, if it appears to the Minister that the matters to which the objection relates are such as to require investigation by public local inquiry before he decides as aforesaid, he shall cause such an inquiry to be held, and where he determines to cause such an inquiry to be held, any of the requirements of those paragraphs to which effect has not been given at the time when he so determines shall be dispensed with.

Sections 2, 3, 4,
9, 10, 42.

SECOND SCHEDULE.

PROCEDURE FOR AUTHORISING COMPULSORY PURCHASE.

PART I.

Purchases by local planning authorities or by local highway authorities.

1.—(1) An order made by a local planning authority or a local highway authority authorising a compulsory purchase under this Act shall designate the land to which the order relates by reference to a map or maps annexed thereto either with or without descriptive matter (which, in case of any discrepancy with the map or maps, shall prevail except in so far as may be otherwise provided by the order).

(2) Subject as aforesaid the form of such an order shall be such as may be prescribed.

2.—(1) After submitting such an order to the Secretary of State, the authority shall publish a notice in the prescribed form describing the land, stating that an order authorising the compulsory purchase thereof

has been submitted to the Secretary of State, naming a place where a copy of the order and of the map or maps and any descriptive matter annexed thereto may be seen at all reasonable hours, and specifying the time (not being less than twenty-eight days from the first local advertisement) within which and the manner in which objections to the order may be made.

2ND SCH.
—cont.

(2) The authority shall serve on every person appearing from the valuation roll to have an interest in any of the land to which the order relates and on such other persons as the Secretary of State may specify, whether individually or as members of a class of persons a notice to the like effect as that of the notice required by the preceding sub-paragraph to be published:

Provided that this sub-paragraph shall not have effect in the case of an order which relates only to land as to which an order under section one of this Act is in force.

(3) The notice required as aforesaid to be published shall be published—

(a) in the case of an order which relates only to land as to which an order under section one of this Act is in force, by Gazette and local advertisement; or

(b) in a case in which service as aforesaid is effected, in one or more newspapers circulating in the locality in which the land to which the order relates is situated.

(4) Publication as aforesaid, and service as aforesaid if any, shall be effected, in the case of an order which relates only to land as to which an order under section one of this Act is in force, as soon as may be after the order has been submitted, and, in any other case, as soon as may be after the order has been submitted and service as aforesaid has been effected.

3. The provisions of the First Schedule to this Act shall have effect in relation to the order if any objection thereto is duly made.

4. Subject to the provisions of the said Schedule in a case in which those provisions have effect, the Secretary of State may confirm the order as submitted, either without modification or with any modification except (unless all persons interested consent) a modification extending the order to any land not designated by the order as submitted.

5. As soon as may be after the order has been confirmed, the authority shall publish in one or more newspapers circulating in the locality in which the land thereby designated is situated a notice in the prescribed form describing the land, stating that the order has been confirmed and naming a place where a copy of the order and of the map or maps and any descriptive matter annexed thereto may be seen at all reasonable hours, and shall serve a like notice on—

(a) any owner or occupier of any of the land thereby designated who, at any time after the publication of the notice of the order as submitted, has sent to the authority a request in

2ND SCH.
—cont

writing to serve him with the notice required by this paragraph specifying an address for service and giving the prescribed particulars of his interest;

- (b) any person who has duly made an objection to the order and at the time of making it or thereafter has sent to the authority such a request as aforesaid; and
- (c) such other persons, if any, as the Secretary of State may specify, whether individually or as members of a class of persons.

6. The Secretary of State may by regulations make provision for enabling proceedings required for the purposes of paragraphs 1 to 3 of this Schedule to be taken, in the case of an order authorising a compulsory purchase of land as to which an application for an order under section one of this Act is pending, contemporaneously with the proceedings on that application, so far as may be practicable.

PART II.

Purchases by Ministers.

7.—(1) An order made by a Minister authorising a compulsory purchase under this Act, other than an order giving an authorisation in accordance with section thirteen of this Act, shall designate the land to which it relates as mentioned in sub-paragraph (1) of paragraph 1 of this Schedule.

(2) Subject as aforesaid the form of such an order shall be such as the Minister making the order may determine.

8. Where a Minister proposes to make such an order, he shall prepare a draft thereof and shall as soon as may be thereafter publish in the manner mentioned in paragraph 2 of this Schedule and serve on every person appearing from the valuation roll to have an interest in any of the land to which the draft relates and on any other persons on whom he may think it proper to effect such service a notice, in such form as he may determine, similar, with requisite adaptations, to the notice mentioned in that paragraph.

9. Paragraphs 3, 4 and 5 of this Schedule shall have effect in relation to such an order, with the substitution, for references to the Secretary of State, and to the authority, of references to the Minister having jurisdiction to make the order, and, for references to an order as submitted and to the confirmation of an order, of references respectively to an order as prepared in draft and to the making of an order.

10. In the case of an order under section four of this Act relating to land as to which an application for an order under section one of this Act is pending, such of the proceedings required for the purposes of the preceding provisions of this Part of this Schedule as it appears to the Ministers having jurisdiction to make the order under section four of this Act to be practicable to take contemporaneously with the proceedings on that application may be so taken.

THIRD SCHEDULE.

Section 13.

PROCEDURE FOR AUTHORISING COMPULSORY PURCHASE
OF STATUTORY UNDERTAKERS' LAND.

PART I.

Purchases by local planning authority or by a local highway authority.

1. An application by a local planning authority or a local highway authority for the purposes of paragraph (a) of subsection (4) of section thirteen of this Act shall be in such form as may be prescribed, and shall describe by reference to a map the land to which the application relates.

2. As soon as may be after submitting the application to the Secretary of State and the appropriate Minister, the authority shall serve on every owner, lessee and occupier of any land to which the application relates a notice in the prescribed form describing the land, stating that an application under the said subsection (4) has been submitted in relation to the land and is about to be considered by the Secretary of State and the appropriate Minister, naming a place where a copy of the application and of the map referred to therein may be seen at all reasonable hours, and specifying the times (not being less than twenty-eight days from the service of the notice) within which and the manner in which objections to the application may be made.

3.—(1) If no objection is duly made by any of the persons on whom notices are required to be served, or if all objections so made are withdrawn, the Secretary of State and the appropriate Minister may, if they think fit, make an order in accordance with the application, either without modification or with any modification except (unless all persons interested consent) a modification extending the order to any land to which the application did not relate.

(2) If any objection is duly made by any of the persons on whom notices are required to be served and is not withdrawn, the Secretary of State and the appropriate Minister shall before making an order on the application consider the objection and shall, if either the person by whom the objection was made or the authority so desire, afford that person and the authority an opportunity of appearing before and being heard by a person appointed by the Secretary of State and the appropriate Minister for the purpose, and may then, if they think fit, make an order as aforesaid.

(3) An objection shall not be deemed for the purposes of the said subsection (4) or of this Schedule to be duly made unless—

(a) it is made within the time and in the manner specified in the notice in that behalf, and

(b) the objection comprises, or there is submitted therewith, a statement in writing of the grounds thereof.

3RD SCH.
—cont.

4. An order made on such an application shall be in such form as the Secretary of State and the appropriate Minister may determine, and shall describe by reference to a map the land to which the order relates.

5.—(1) As soon as may be after an order has been made on such an application, the authority shall serve on every owner, lessee and occupier of any land to which the order relates a notice in the prescribed form stating that the order has been made and naming a place where a copy of the order and of the map referred to therein may be seen at all reasonable hours.

(2) In relation to an order made on such an application, references in this Act to notices of the confirmation of an order required to be published shall be construed as references to the notices required by the preceding sub-paragraph to be served, and references to the date of first publication of notices of the confirmation of an order shall be construed as references to the date on which the service of notices required by the preceding sub-paragraph is completed.

PART II.

Purchases by Ministers.

6. An order made by a Minister and the appropriate Minister for the purposes of paragraph (b) of subsection (4) of section thirteen of this Act shall be in such form as they may determine, and shall describe by reference to a map the land to which the order relates.

7. Where a Minister and the appropriate Minister propose to make such an order, they shall prepare a draft thereof and shall as soon as may be thereafter serve on every owner, lessee and occupier of any land to which the draft relates a notice in such form as they may determine describing the land, stating that the making of the order is proposed, naming a place where a copy of the draft and of the map referred to therein may be seen at all reasonable hours, and specifying the time (not being less than twenty-eight days from the service of the notice) within which and the manner in which objections to the proposal may be made.

8. Paragraphs 3 and 5 of this Schedule shall have effect in relation to such an order, with the substitution for references to the Secretary of State of references to the Minister having, in conjunction with the appropriate Minister, jurisdiction to make the order, and, for references to an application and to the making of an order thereon, of references to an order as prepared in draft and to the making of an order, with the omission of the references in sub-paragraph (2) of paragraph 3 to the applicant authority, and with the substitution for the references in paragraph 5 to that authority of a reference to the Minister having jurisdiction as aforesaid.

FOURTH SCHEDULE.

Sections 13, 24,
34, 35.ASSESSMENT OF COMPENSATION TO STATUTORY
UNDERTAKERS.

PART I.

Amount of Compensation.

1. The compensation to be paid—

- (a) in respect of a compulsory purchase authorised under subsection (4) of section thirteen of this Act, as respects the interest of the person by whom the statutory undertaking in question is carried on,
- (b) in respect of the extinguishment of any right, or the imposition of any requirement, under section twenty-four of this Act,
- (c) in respect of the refusal of permission to develop land, or the granting of such permission subject to conditions, by the Secretary of State and the appropriate Minister under section thirty-four of this Act, or in respect of the revocation or modification of any such permission granted as mentioned in subsection (1) of section thirty-five of this Act,

shall in default of agreement be assessed by the arbitration of the tribunal constituted in accordance with the provisions of Part II of this Schedule, and the amount of the compensation shall be an amount calculated in accordance with the provisions of the next following paragraph:

Provided that, as respects compensation in respect of a compulsory purchase, if before the expiration of two months from the date on which notice to treat is served, in respect of the interest of the person by whom the statutory undertaking is carried on that person gives notice in writing to the purchasing authority that he elects that as respects all or any of the land comprised in the purchase the compensation shall be ascertained in accordance with the enactments, other than rule (5) of the rules set out in section two of the Acquisition of Land (Assessment of Compensation) Act, 1919, which would be applicable apart from the provisions of this Schedule, the compensation shall be so ascertained.

2.—(1) The amount of the said compensation shall, subject to the provisions of this paragraph, be the aggregate of the following amounts, that is to say,—

- (a) the amount of any expenditure reasonably incurred in acquiring land, providing apparatus, erecting buildings or doing work for the purpose of any adjustment of the carrying on of the undertaking rendered necessary by the proceeding giving rise to compensation, and

4TH SCH.
—cont.

- (b) when any such adjustment is made, the estimated amount of any decrease in net receipts from the carrying on of the undertaking pending the adjustment, in so far as the decrease is directly attributable to the said proceeding together with such amount as appears reasonable compensation for any estimated decrease in net receipts from the carrying on of the undertaking in the period after the adjustment has been completed, in so far as the decrease is directly attributable to the adjustment; or
 - (c) where no such adjustment is made, such amount as appears reasonable compensation for any estimated decrease in net receipts from the carrying on of the undertaking which is directly attributable to the proceeding giving rise to compensation; and
 - (d) in the case of compensation in respect of the imposition of a requirement under section twenty-four of this Act to remove any apparatus, any expense reasonably incurred by the person carrying on the undertaking in complying with the requirements reduced by the value after removal of the apparatus removed.
- (2) The amount of any compensation assessed in accordance with the preceding sub-paragraph shall be reduced by such amount (if any) as appears to the tribunal to be appropriate to offset—
- (a) the estimated value of any property (whether moveable or heritable) belonging to the person carrying on the statutory undertaking in question and used for the carrying on thereof which as the result of any such adjustment as is mentioned in the preceding sub-paragraph cease to be so used, in so far as the value of the property has not been taken into account under head (d) of the preceding sub-paragraph; and
 - (b) the estimated amount of any increase in net receipts from the carrying on of the undertaking in the period after any such adjustment has been completed, in so far as that amount has not been taken into account under head (b) of the preceding sub-paragraph and is directly attributable to the adjustment,

and by any further amount which appears to the tribunal to be appropriate having regard to any increase in the capital value of heritable property belonging to the person carrying on the statutory undertaking in question which is directly attributable to any such adjustment as aforesaid, allowance being made for any reduction made under head (b) of this sub-paragraph.

(3) References in this paragraph to a decrease in net receipts shall be construed as references to the amount by which a balance of receipts over expenditure is decreased, or of expenditure over receipts is increased, or, where a balance of receipts over expenditure is converted into a balance of expenditure over receipts, as references to the aggregate of the two balances; and references to an increase in net receipts shall be construed accordingly.

(4) In this paragraph the expression "proceeding giving rise to compensation" means the particular action (that is to say, purchase, extinguishment of a right, imposition of a requirement, refusal of permission, grant of permission subject to conditions, or revocation or modification of permission) in respect of which compensation falls to be assessed, as distinct from any development or project in connection with which the action in question may have been taken.

4TH SCH.
—cont.

PART II.

Tribunal for assessment of compensation to statutory undertakers.

3.—(1) The tribunal for the assessment of compensation referred to in Part I of this Schedule shall consist of four persons, namely—

- (a) an advocate or solicitor of not less than seven years' standing, appointed by the Lord President of the Court of Session to act as chairman;
- (b) two persons appointed by the Secretary of State as persons having special knowledge and experience of the valuation of land and of civil engineering respectively; and
- (c) for each claim coming before the tribunal, a person selected by the appropriate Minister, as a person having special knowledge and experience of statutory undertakings of the kind carried on by the claimant, from the members of a panel appointed by appropriate Ministers of persons appearing to them to have such knowledge and experience of statutory undertakings.

(2) The Treasury may pay out of moneys provided by Parliament to the members of the tribunal such remuneration (whether by way of salaries or by way of fees), and such allowances, as the Treasury may determine.

(3) The provisions of sections three, five and six of the Acquisition of Land (Assessment of Compensation) Act, 1919, shall apply in relation to the tribunal and proceedings before the tribunal as they apply in relation to an official arbiter and proceedings before an official arbiter, with the substitution for references in the said section five to the acquiring authority of references to the authority or Minister from whom compensation is claimed.

Section 17.

FIFTH SCHEDULE.

MODIFICATIONS OF LANDS CLAUSES ACTS, RAILWAYS CLAUSES CONSOLIDATION (SCOTLAND) ACT, 1845, AND ACQUISITION OF LAND (ASSESSMENT OF COMPENSATION) ACT, 1919, FOR PURPOSES OF PART I.

PART I.

The Lands Clauses Acts.

8 & 9 Vict.
c. 19.

1.—(1) In construing the Lands Clauses Acts and the Railways Clauses Consolidation (Scotland) Act, 1845, as incorporated with Part I of this Act—

- (a) Part I of this Act, or, in relation to a compulsory purchase, the said Part I (together, in the case of a purchase authorised by virtue of such an order as is mentioned in section four of this Act, with the relevant enactment mentioned in that section) and the order by which the purchase is authorised, shall be deemed to be the special Act;
- (b) in relation to a compulsory purchase, references to the promoters of the undertaking or to the railway company shall be construed as references to the purchasing authority;
- (c) references to the execution of the works or to the construction of the railway shall be construed as including references to any erection, construction or carrying out of buildings or works authorised by Part I of this Act; and in relation to any such erection, construction or carrying out references in section six of the Railways Clauses Consolidation (Scotland) Act, 1845, to the railway company shall be construed as references to the person by whom the buildings or works in question are erected, constructed or carried out; and
- (d) references to the execution of the works or to the construction of the railway shall be construed as including also references to any erection, construction or carrying out of buildings or works on behalf of a Minister on land purchased by him under Part I of this Act for the purposes for which the land was purchased.

(2) For the purposes of section one hundred and sixteen of the Lands Clauses Consolidation (Scotland) Act, 1845 (which provides that powers of compulsory purchase shall not be exercised after the expiration of the prescribed period) the prescribed period shall be, in relation to any purchase, three years from the coming into operation of the order authorising it.

2. The following sections of the Lands Clauses Consolidation (Scotland) Act, 1845, shall be excepted from incorporation with Part I of this Act, that is to say,—

- (a) sections one hundred and twenty to one hundred and twenty-four (which relate to sale of superfluous land);

- (b) section one hundred and twenty-seven (which relates to promoters making good deficiencies in land tax and rates); and
- (c) sections one hundred and forty-two and one hundred and forty-three (which relate to access to the special Act).

5TH SCH.
—cont.

3. The purchasing authority shall, without prejudice to any power in that behalf exercisable by them apart from this paragraph, be entitled, notwithstanding anything in section seventeen of the Lands Clauses Consolidation (Scotland) Act, 1845, or in any other provision of the Lands Clauses Acts, to purchase one or some of two or more interests subsisting therein without purchasing the other or others of them.

4.—(1) When the purchasing authority have served notice to treat on every owner of any land, they may at any time thereafter serve a notice on every occupier of any of the land, and on every other person who having been served with a notice to treat has requested the authority in writing to serve him with any notice under this subparagraph and has furnished them with an address for service thereof, describing the land to which the notice relates and stating their intention to enter on and take possession thereof at the expiration of such period (not being less than twenty-eight days) from the date on which the notice is served as may be therein specified.

(2) At the expiration of the period specified in such a notice (or, where two or more such notices are required, and the periods specified in the several notices do not expire at the same time, of the last of those periods to expire), or at any time thereafter, the purchasing authority may enter on and take possession of the land without previous consent or compliance with sections eighty-three to eighty-eight of the Lands Clauses Consolidation (Scotland) Act, 1845, but subject to the payment of the like compensation for the land of which possession is taken, and interest on the compensation agreed or awarded, as they would have been required to pay if those provisions had been complied with.

(3) This paragraph shall not have effect in relation to a purchase authorised by a purchase order providing for expedited completion being a purchase of land as respects which the provisions of the Sixth Schedule to this Act apply to the order.

5.—(1) The following provisions shall have effect in substitution for the provisions of section ninety of the Lands Clauses Consolidation (Scotland) Act, 1845, that is to say, no person shall be required to sell a part only of any house, building or manufactory, or of a park or garden belonging to a house, if he is willing and able to sell the whole of the house, building, manufactory, park or garden unless the arbiter determines that in the case of a house, building, or manufactory such part as is proposed to be taken can be taken without material detriment to the house, building or manufactory, or, in the case of a park or garden, that such part as aforesaid can be taken without seriously affecting the amenity or convenience of the house, and, if he so determines, he shall award compensation in respect of any loss due to the severance of the part so proposed to be taken, in addition to the value of that part, and thereupon the party interested shall be required to

5TH SCH
—cont.

sell to the purchasing authority that part of the house, building, manufactory, park or garden.

(2) This paragraph shall not have effect in relation to a purchase authorised by a purchase order providing for expedited completion being a purchase of land as respects which the provisions of the Sixth Schedule to this Act apply to the order.

6. Notices required to be served by the purchasing authority may, notwithstanding anything in section eighteen of the Lands Clauses Consolidation (Scotland) Act, 1845, be served and addressed in the manner specified in section fifty-two of this Act in relation to notices required to be served under this Act.

PART II.

The Acquisition of Land (Assessment of Compensation) Act, 1919.

7. The arbiter shall not take into account any interest in land, or any enhancement of the value of any interest in land by reason of any building erected, work done or improvement or alteration made, whether on the land purchased or on any other land with which the claimant is, or was at the time of the erection, doing or making of the building, works, improvement or alteration, directly or indirectly concerned, if the arbiter is satisfied that the creation of the interest, the erection of the building, the doing of the work, the making of the improvement or the alteration, as the case may be, was not reasonably necessary and was undertaken with a view to obtaining compensation or increased compensation.

8.—(1) As respects any dwelling-house in the district of a local authority for the purposes of the Housing (Scotland) Acts, 1925 to 1944, which in their opinion is unfit for human habitation and not capable at reasonable expense of being rendered so fit, and which is comprised—

- (a) in land designated by an order made under section one of this Act, or
- (b) in land for the compulsory purchase of which a local planning authority or a local highway authority have resolved to seek authorisation under any enactment in Part I of this Act, or as respects which a Minister proposes to make an order under section three, four or nine thereof,

the local authority for the purposes of the said Acts may make and submit to the Secretary of State an order in such form as may be prescribed by regulations made by him under section forty-four of the Housing (Scotland) Act, 1930, declaring the house to be in that state, and, if the order is confirmed by him, the compensation to be paid for the house on a compulsory purchase thereof pursuant to any authorisation given by an order under any enactment in Part I of this Act confirmed or made by the Minister having jurisdiction to give such authorisation either before or within two years after the confirmation by the Secretary of State of the order submitted under this paragraph, shall be assessed in like manner as if it had been a dwelling-house specified in a compulsory purchase order as unfit for human habitation and purchased compulsorily under Part I of the Housing (Scotland)

Act, 1930, and the Acquisition of Land (Assessment of Compensation) Act, 1919, shall accordingly have effect, in its application for the purposes of Part I of this Act, subject to this provision.

5TH SCH.
—cont.

(2) Before submitting an order under this paragraph to the Secretary of State, the local authority shall serve on the owner of and, so far as it is reasonably practicable to ascertain such persons, on the superior of, and on every holder of a heritable security over the dwelling-house or of any part thereof; a notice in such form as may be prescribed as mentioned in the preceding sub-paragraph, stating the effect of the order and that it is about to be submitted to the Secretary of State for confirmation, and specifying the time within which and the manner in which objection thereto can be made.

(3) If no objection is duly made by any of the persons on whom notices are required to be served, or if all objections so made are withdrawn, the Secretary of State may, if he thinks fit, confirm the order, but in any other case he shall before confirming the order consider any objection not being withdrawn and shall, if either the person by whom the objection was made or the local authority so desire, afford that person and the authority an opportunity of appearing before and being heard by a person appointed by the Secretary of State for the purpose, and may then, if he thinks fit, confirm the order.

(4) Where the provisions of sub-paragraph (1) of this paragraph have effect as to the compensation to be paid for a dwelling-house on a compulsory purchase thereof under any enactment in Part I of this Act, the provisions of section fifty-eight of the Housing (Scotland) Act, 1935 (which relate to payments in respect of well-maintained houses) shall have effect, as they have effect where a dwelling-house is made the subject of a compulsory purchase order under Part I of the Housing (Scotland) Act, 1930, as being unfit for human habitation, if the Secretary of State is satisfied as mentioned in that section on a representation made to him by a person who would be entitled to any payment under that section or to a share thereof within three months from his first becoming aware that a notice to treat for the purchase of any interest in the house has been served: 25 & 26 Geo. 5.
c. 41.

Provided that, in the application of that section for the purposes of this sub-paragraph, there shall be substituted, for references therein to the local authority therein mentioned and to the order therein mentioned, references respectively to the purchasing authority and to the order by which the purchase of the house is authorised.

(5) In this paragraph the expression "dwelling-house" has the same meaning as in the Housing (Scotland) Act, 1925, and in determining for the purposes of this paragraph whether a dwelling-house is fit for human habitation regard shall be had to the matters to which regard is required by section forty-nine of the Housing (Scotland) Act, 1930, to be had in determining that question for the purposes of that Act, and sections one hundred and four and one hundred and nine of the Housing (Scotland) Act, 1925 (which relate to the surveying and examination of land) shall have effect as if the powers conferred by this paragraph were powers under that Act. 15 & 16 Geo. 5.
c. 15.

9. The power conferred by subsection (2) of section five of the Acquisition of Land (Assessment of Compensation) Act, 1919, to

5TH SCH.
—*cont.*

withdraw a notice to treat shall not be exercisable in the case of a notice to treat which is deemed to have been served by virtue of section eleven of this Act.

Sections 17, 51,
62.

SIXTH SCHEDULE.

PROCEDURE FOR COMPLETION OF COMPULSORY PURCHASE UNDER ORDERS PROVIDING FOR EXPEDITED COMPLETION.

PART I.

Procedure for expedited completion.

1.—(1) Except as provided by sub-paragraph (3) of this paragraph, when a purchase order providing for expedited completion has come into operation the Lands Clauses Acts and the Acquisition of Land (Assessment of Compensation) Act, 1919, shall have effect as if a notice to treat (that is to say, such a notice as is mentioned in section seventeen of the Lands Clauses Consolidation (Scotland) Act, 1845) had been served on all the parties interested in the land as respects which this Schedule applies by virtue of the order or the parties enabled by the said Act of 1845 to sell and convey the same or their rights and interests therein.

(2) The date on which a notice to treat is to be deemed by virtue of the preceding sub-paragraph to have been served on any party shall be the date on which the order is recorded in the appropriate Register of Sasines in pursuance of section sixteen of this Act.

(3) Notwithstanding anything in sub-paragraph (1) of this paragraph, no notice to treat shall be deemed to be served on any person in respect of an interest being either—

- (a) a short tenancy (that is to say a tenancy for a year or from year to year or any less interest); or
- (b) a long tenancy which is about to expire (that is to say, a tenancy granted for a period longer than a year or from year to year which at the date when apart from this provision notice to treat would be deemed by virtue of the said sub-paragraph (1) to be served on the owner of the tenancy, has still to run only such period longer than a year as may be specified in the order for the purposes of the operation of this provision in relation to the land in which the tenancy subsists, the period which the tenancy has then still to run being ascertained on the assumption that the tenant will exercise any option to renew the tenancy, and will not exercise any option to determine the tenancy, then or thereafter available to him and that the landlord will exercise any option to determine the tenancy then or thereafter available to him).

(4) The reference in sub-paragraph (1) of this paragraph to the Lands Clauses Acts and the Acquisition of Land (Assessment of Compensation) Act, 1919, is to those enactments as modified by the Fifth Schedule to this Act and by paragraph 3 and Part II of this Schedule (and as amended by Part II of this Act).

6TH SCH.
—cont.

2. The notice of the confirmation of an order authorising compulsory purchase required by this Act to be published shall, in the case of a purchase order providing for expedited completion, include a notification to the effect that every person entitled to claim compensation in respect of any of the land as respects which this Schedule applies by virtue of the order, or in respect of any interest in any such land, is invited to give information to the purchasing authority in such form as may be prescribed of his name and address and of the land and interest in question.

3.—(1) At any time or from time to time after the coming into operation of a purchase order providing for expedited completion but not earlier than such time as is mentioned in sub-paragraph (2) of this paragraph, the purchasing authority may execute, as respects an area consisting either of the whole or a part of the land as respects which this Schedule applies by virtue of the order, a declaration designating that area and stating—

- (a) their intention to enter on the land in the designated area and take possession thereof at the expiration of such period (not being less than twenty-eight days) as may be specified therein from the date on which the service of notices on occupiers required by sub-paragraph (3) of this paragraph is completed; and
- (b) that at the expiration of that period the purchasing authority will expedite a notice of title which, on being recorded in the appropriate Register of Sasines, will vest the land in the designated area in the authority.

(2) The earliest time at which such a declaration may be executed shall be the expiration of two months from the date of the recording of the order in pursuance of section sixteen of this Act:

Provided that the order may provide for the substitution of a period shorter than two months for the purposes of the operation of this sub-paragraph as respects any land, so however, that provision for the substitution of a shorter period shall not be so made in relation to any land unless the order as submitted or the draft of the order or the application therefor, as the case may be, made such provision in relation thereto.

(3) As soon as may be after executing such a declaration, the purchasing authority shall serve upon every occupier of any of the land in the area designated thereby (other than any of the land therein in which a short tenancy, or a long tenancy which is about to expire, is subsisting), and on every other person who has given information to the authority in relation to any of the land therein pursuant to such invitation as is mentioned in paragraph 2 of this Schedule, a notice describing that area and stating the effect of the declaration.

6TH SCH.
—cont.

(4) At the expiration of the period specified in such a declaration from the date on which the service of notices on occupiers required by the last preceding sub-paragraph is completed (as to which date a certificate given by the purchasing authority shall be conclusive)—

- (a) the purchasing authority shall be entitled to enter on and take possession of the land in the area designated by the declaration or any of it without previous consent or compliance with sections eighty-three to eighty-eight of the Lands Clauses Consolidation (Scotland) Act, 1845; and
- (b) the purchasing authority shall expedite a notice of title containing a description of the land in the area designated by the declaration and narrating the circumstances under which the land has been purchased, and on such notice of title being recorded in the appropriate Register of Sasines in accordance with section eighty of the Lands Clauses Consolidation (Scotland) Act, 1845, the land shall vest in the purchasing authority absolutely and free of any heritable security or charge as if the circumstances in which under that Act the promoters of an undertaking have powers to expedite a notarial instrument for vesting in them lands or any estate or interest in lands (including the estate, right and interest of any holder of a heritable security), or for the extinguishment of, or of a portion of, any charge, had arisen as regards all the said land and, subject to the next succeeding sub-paragraph, as regards all interests therein, and the authority had duly exercised those powers accordingly at the expiration of the said period;

but the purchasing authority shall be liable to pay the like compensation, and interest on the compensation agreed or awarded, as they would have been required to pay if the provisions of sections eighty-three to eighty-eight of the said Act, and the provisions thereof compliance with which would have been requisite in order to render the said powers exercisable by them, had been complied with.

(5) Notwithstanding anything in sub-paragraph (1) or (4) of this paragraph, the following provisions shall have effect as respects land in an area designated by a declaration executed under sub-paragraph (1) of this paragraph in which a short tenancy, or a long tenancy which is about to expire, is subsisting, that is to say—

- (a) in the case of a short tenancy, the right of entry conferred by sub-paragraph (4) of this paragraph shall not be exercisable, and the vesting of the land in the purchasing authority shall be subject to the tenancy during its subsistence, but without prejudice to any power to require a tenant to give up possession exercisable by the purchasing authority by virtue of the Lands Clauses Acts;
- (b) in the case of a long tenancy which is about to expire, the right of entry conferred by sub-paragraph (4) of this paragraph shall not be exercisable unless or until the purchasing authority have served notice to treat in respect of the tenancy and they have thereafter served a notice upon every occupier of any of the land in which the tenancy subsists describing the land to which the notice relates and stating

their intention to enter on and to take possession thereof at the expiration of such period (not being less than twenty-eight days) from the date on which the notice is served as may be therein specified, and that period has expired, and the vesting of the land in the authority shall be subject to the tenancy until the expiration of that period or the expiration of the tenancy, whichever first occurs.

6TH SCH.
—cont.

(6) Every notice of the confirmation of a purchase order providing for expedited completion required by this Act to be published, shall refer to the provisions as to entry and vesting contained in sub-paragraph (4) of this paragraph.

4. Where the land as respects which this Schedule applies by virtue of a purchase order providing for expedited completion comprises part only of any house, building or manufactory, or of a park or garden belonging to a house, then, if at any time after the coming into operation of the order and before the execution of a declaration under the last preceding paragraph as respects the said part, the owner of any interest therein gives notice to the purchasing authority in that behalf, no notice to treat shall be deemed by virtue of this Schedule to have been served in respect of any interest in the said part, and as from the giving of the notice the order shall have effect in relation to the said part as if this Schedule had not been applied thereto.

5.—(1) Where the compensation payable in respect of the interests in land in respect of which a purchasing authority have expedited a notice of title under sub-paragraph (4) of paragraph 3 of this Schedule or the amount of any sum payable as a supplement thereto is not finally ascertained at the time when such notice of title is presented for recording, then, if the notice of title is accompanied by a certificate by the purchasing authority to that effect, it may lawfully be recorded in the appropriate Register of Sasines notwithstanding that it is not stamped; and section twelve of the Finance Act, 1895 (which provides for the collection of stamp duty, where property is vested by way of sale by virtue of an Act, within three months of the date of vesting) shall have effect as respects the vesting of those interests with the substitution for the reference therein to the date of vesting of a reference to the date on which the compensation, together, if any sum is payable as a supplement thereto, with the amount of that sum, has been finally ascertained. 58 & 59 Vict.
c. 16.

(2) Where after the vesting of any land in a purchasing authority under paragraph 3 of this Schedule a person retains possession of any writ relating to the land, he shall be deemed to have given to the authority an undertaking to produce that writ to the authority on all necessary occasions.

PART II.

Adjustments where provision for expedited completion made.

6.—(1) The time within which a question of disputed compensation arising out of an acquisition of an interest in land in respect of which a notice to treat is deemed to have been served by virtue of this Schedule may be referred to arbitration shall be the period of six years from the date at which the person claiming compensation or a

6TH SCH.
—*cont.*

person from whom he derives title first knew, or could reasonably be expected to have known, of the vesting of the interest under paragraph 3 of this Schedule.

(2) In reckoning the period of six years referred to in sub-paragraph (1) of this paragraph, no account shall be taken of any period during which the person claiming compensation or the person from whom he derives title was in minority or less age or was under legal disability.

7. The power conferred by subsection (2) of section five of the Acquisition of Land (Assessment of Compensation) Act, 1919, or that subsection as applied by paragraph 3 of the Fourth Schedule to this Act, to withdraw a notice to treat shall not be exercisable, in the case of a notice to treat which is deemed to have been served by virtue of this Schedule in respect of the interest of an occupier, at any time after the service on that occupier of the notice referred to in sub-paragraph (3) of paragraph 3 of this Schedule, and, in the case of a notice to treat so deemed to have been served in respect of any other interest, at any time after the vesting of that interest in the purchasing authority under paragraph 3 of this Schedule.

8. In relation to a compulsory purchase authorised by a purchase order providing for expedited completion, being a purchase of an interest in respect of which a notice to treat is deemed to have been served by virtue of this Schedule, the following sections of the Lands Clauses Consolidation (Scotland) Act, 1845, shall be excepted from the incorporation of that Act with Part I of this Act, that is to say, sections fifty-six to sixty and sixty-three to sixty-six (which relate to the mode of ascertaining compensation to absent parties), section ninety (which relates to sales of parts of buildings) and sections one hundred and seventeen to one hundred and nineteen (which relate to interests which have by mistake been omitted to be purchased).

9.—(1) Where any of the land as respects which this Schedule applies by virtue of a purchase order providing for expedited completion constitutes a part only of land burdened with a charge, the following provisions of this paragraph shall have effect.

(2) Any question as to the apportionment mentioned in section one hundred and nine of the Lands Clauses Consolidation (Scotland) Act, 1845, shall be referred and determined as mentioned in section one of the Acquisition of Land (Assessment of Compensation) Act, 1919.

(3) Such portion of the charge as may be apportioned under the said section one hundred and nine to the land as respects which this Schedule applies by virtue of the order shall be treated as having been extinguished on the vesting of that land in the purchasing authority under paragraph 3 of this Schedule, and sections one hundred and eight to one hundred and eleven of the Lands Clauses Consolidation (Scotland) Act, 1845, shall have effect as if the extinguishment had taken place under section one hundred and ten thereof:

Provided that if the person entitled to the charge and the owner of the land subject thereto enter into an agreement to that effect, the said sections one hundred and eight to one hundred and eleven shall have effect as if the person entitled to the charge had discharged therefrom the land as respects which this Schedule applies by virtue

of the order, on the condition mentioned in the said section one hundred and nine, at the time of the vesting of that land in the purchasing authority under paragraph 3 of this Schedule, and in that case none of the charge shall be treated as having been extinguished by virtue of that paragraph so far as regards the remaining part of the land charged therewith.

6TH SCH.
—cont.

10. Where any land as respects which this Schedule applies by virtue of a purchase order providing for expedited completion constitutes a part only of land comprised in a lease for a term of years unexpired, section one hundred and twelve of the Lands Clauses Consolidation (Scotland) Act, 1845, shall have effect subject to the modification that, for references therein to the time of the apportionment of rent therein mentioned, there shall be substituted references to the time of the vesting of the first-mentioned land in the purchasing authority under paragraph 3 of this Schedule.

11. Any person who in consequence of the vesting of any land in the purchasing authority under paragraph 3 of this Schedule is relieved from any liability, whether in respect of a charge, rent under a lease, interest due on any heritable security or any other matter, and who makes any payment as in satisfaction or part satisfaction of that liability shall, if he shows that when he made the payment he did not know of the facts which constitute the cause of his being so relieved or of some one or more of them, be entitled to recover the sum paid from the person to whom it was paid.

PART III.

Interpretation.

12. In this Schedule—

references to a heritable security include references to any such security as is mentioned in the words introductory to sections ninety-nine to one hundred and six of the Lands Clauses Consolidation (Scotland) Act, 1845;

references to a charge include references to any such feu duty, ground annual, or rent or other payment or incumbrance as is mentioned in the words introductory to sections one hundred and seven to one hundred and eleven of the last mentioned Act; and

references to the confirmation of an order shall be construed, in relation to an order made by a Minister or by a Minister and the appropriate Minister, as references to the making of the order.

Section 53.

SEVENTH SCHEDULE.

APPLICATION OF THE RULE AS TO ASSESSMENT OF
COMPENSATION IN CERTAIN SPECIAL CASES.

1. Where in ascertaining the value of any such interest, or the amount of any such damage, as is mentioned in subsection (1) of section fifty-three of this Act regard is to be had to rent payable in respect of a tenancy created after the thirty-first day of March, nineteen hundred and thirty-nine (whether the tenancy is vested in the person claiming the compensation or not), the said rent shall be taken to be the lesser of the two following amounts, that is to say,—

- (a) the rent in fact payable in respect of the tenancy; or
- (b) the maximum rent which would have been obtainable from a willing tenant if the tenancy had been created on the thirty-first day of March, nineteen hundred and thirty-nine, for the like period and subject to the like terms and conditions.

2. Where the value of any such interest, or the amount of any such damage, as aforesaid is increased by reason of the possibility of redeveloping the land in which the interest subsists, or the land affected by severance or injuriously affected, as the case may be, in combination with other land, the amount of the increase shall be disregarded in so far as that possibility is attributable to circumstances, other than the effluxion of time, occurring since the thirty-first day of March, nineteen hundred and thirty-nine.

3. In ascertaining the value of any such interest as aforesaid, or the amount of any such damage as aforesaid, a dwelling-house to which the Rent and Mortgage Interest (Restrictions) Acts, 1920 to 1925, applied at the time of service of the notice to treat shall not be treated as a dwelling-house to which those enactments then applied unless they applied thereto at the thirty-first day of March, nineteen hundred and thirty-nine.

13 & 14 Geo. 5.
c. 10.

4. Where a person is in possession of a holding as defined for the purposes of the Agricultural Holdings (Scotland) Act, 1923, having an interest therein greater than as tenant for a year or from year to year, then so far as the value of the interest is attributable to crops it shall be ascertained in like manner as in the case of the interest of a tenant from year to year, that is to say, without regard to the rule set out in subsection (1) of section fifty-three of this Act.

EIGHTH SCHEDULE.

Section 57.

ASCERTAINMENT OF COMPENSATION FOR PURCHASE OF
LAND VALUED UNDER THE WAR DAMAGE ACT, 1943.

Certified after-damage value of land to be taken in certain circumstances as its value for compensation on compulsory purchase.

1.—(1) Where the subject of a compulsory purchase, the compensation for which is by virtue of section fifty-three of this Act to be assessed subject to the rule set out in subsection (1) of that section, is or comprises an interest in the whole of the land in a hereditament within the meaning of the War Damage Act, 1943, the value of which is required by that Act to be ascertained by reference to its state after war damage and to an assumed sale thereof, the value of the said land for the purposes of the ascertainment of the compensation for the purchase shall be taken to be such amount as may be certified by the War Damage Commission to be the value of the hereditament as ascertained as aforesaid (in this Schedule referred to as the "certified after-damage value" of that land), subject however to the two next succeeding sub-paragraphs.

(2) The preceding sub-paragraph shall not have effect if, between the occurrence of the war damage and the time when the notice to treat is served, the land in the hereditament has been brought into a state such as to make it capable of being as beneficially used while remaining in that state as it was immediately before the occurrence of the war damage.

(3) If the land in the hereditament has not been brought into such a state as aforesaid, but there is any material difference either—

(a) between the state of the land in the hereditament after damage by reference to which the value thereof falls to be ascertained under the War Damage Act, 1943, and its state at the time when the notice to treat is served; or

(b) between the incumbrances, if any, to which the said land was subject immediately after the occurrence of the war damage and the incumbrances, if any, to which it is subject at the time when the notice to treat is served, being incumbrances of a kind required by the said Act to be taken into account in ascertaining the value of the hereditament,

the value of the said land for the purposes of the ascertainment of the compensation for the purchase shall be taken to be the certified after-damage value thereof adjusted by adding, or by subtracting, as the case may require, the amount by which the value of the hereditament as required to be ascertained under the said Act would have been greater or less if that value had fallen to be ascertained by reference to the state of the hereditament at the time when the notice to treat is served, and if it had been subject immediately after the occurrence of the war damage to all incumbrances of any such kind as aforesaid to which it is subject at the time when the notice to treat is served and to no other incumbrances of any such kind.

8TH SCH.
—cont.

(4) Where this paragraph has effect as respects a purchase, the subject of which comprises, but does not consist solely of, the interest in question in the land in the hereditament, the compensation for the purchase shall be ascertained, and all statutory provisions relating to the ascertainment thereof or to the carrying out of the purchase or to matters connected therewith shall have effect, subject to any agreement between the purchasing authority and other parties concerned, as if the interest in question in that land had been purchased separately and separate notices to treat had been served accordingly, and had been served simultaneously.

Compensation for compulsory purchase of several interests in land to be ascertained in certain circumstances by apportionment of certified after-damage value thereof.

2.—(1) Where by virtue of paragraph 1 of this Schedule the value of the land comprised in a hereditament is to be taken for the purposes of the ascertainment of compensation to be its certified after-damage value (or that value as adjusted), and notices to treat have been served in respect of two or more interests in the whole of that land on the same date or within such period as may be fixed as respects that land under rules, the compensation to be paid for the purchase of each of those interests shall be ascertained in accordance with the following provisions of this paragraph.

(2) The amount representing the value of each of those interests as it would have fallen to be ascertained if this paragraph had not had effect in relation thereto shall be agreed, assessed or determined in accordance with the provisions of sub-paragraphs (3) to (7) of this paragraph, and the compensation to be paid for the purchase of each interest shall be the proportion of the certified after-damage value of the land, or of that value as adjusted, as the case may be, which the amount agreed, assessed or determined in respect of that interest bears to the aggregate of the amounts agreed, assessed or determined in respect of the several interests:

Provided that if the interests in question do not include all interests subsisting in the land at the date or at the expiration of the period aforesaid, an amount representing the value of any excluded interest, as it would have fallen to be ascertained if that interest had been purchased and this paragraph had not had effect in relation thereto, shall be agreed, assessed or determined in accordance with the said provisions and added to the said aggregate.

(3) If the values of the several interests in question and of any excluded interests are not otherwise agreed, the claimant in respect of each of the interests in question, and the purchasing authority as respects any excluded interest, shall cause an estimate of the value of that interest to be made and transmitted to an officer of the Valuation Office appointed by the Commissioners of Inland Revenue and that office shall, after considering the estimates, take steps in accordance with rules for securing if possible agreement between the claimants, and, if there is any excluded interest, the purchasing authority, as to the value of each interest.

(4) In default of agreement as to the value of any interest, the said officer shall make an assessment of the value of that interest.

8TH SCH.
—cont.

(5) The costs of the employment by a claimant of a person skilled in valuation to advise or act for him for the purposes of either of the two last preceding sub-paragraphs on a purchase by a local or public authority within the meaning of the Acquisition of Land (Assessment of Compensation) Act, 1919, shall be paid by the authority.

(6) If any claimant, or, if there is any excluded interest, the purchasing authority, is aggrieved by an assessment made by the said officer, the claimant or the authority may in accordance with rules require the value of the interest dealt with by the assessment to be determined by one of the panel of arbiters appointed under section one of the said Act of 1919.

(7) If in respect of any of the interests in question no claim is duly made within the time prescribed by rules, an independent person skilled in valuation may be appointed in accordance with rules to act for the purposes of sub-paragraphs (3) to (6) of this paragraph in respect of that interest, and those sub-paragraphs shall have effect as if all things done thereunder by the person so appointed had been duly authorised, by all persons concerned in respect of the interest in question, to be done by that person as agent for them.

(8) Where the last preceding sub-paragraph has had effect as respects any interest and the value thereof has been agreed or assessed under sub-paragraph (3) or (4) of this paragraph, if any person who would have been entitled but for this paragraph to have any question of disputed compensation in relation to that interest referred to arbitration in accordance with the said Act of 1919 shows in accordance with rules that the fact that no claim was made as aforesaid was not attributable to any default on his part, he may in accordance with rules require the value of that interest to be determined by one of the panel of arbiters appointed under section one of the said Act of 1919, and if the compensation on the basis of the value of the interest as so determined is greater or less than the compensation on the basis of the value thereof as agreed or assessed as aforesaid, the difference shall be recoverable by the person entitled to the compensation from the purchasing authority or by the authority from him, as the case may be.

(9) The costs of any arbitration under sub-paragraph (6) or (8) of this paragraph, including any fees, charges and expenses of the arbitration or award, shall be in the discretion of the official arbiter, who may direct to and by whom and in what manner those costs or any part thereof shall be paid, and the official arbiter may in any case disallow the costs of counsel.

(10) The amount of any costs that an authority are liable to pay by virtue of sub-paragraph (5) of this paragraph, or of any arbitration under sub-paragraph (6) or (8) thereof, shall be determined by reference to scales to be prescribed by the Treasury, and in case of difference as to the amount of any such costs they shall, if payable under sub-paragraph (5) of this paragraph, be taxed in such manner as the Treasury may direct, or, if payable under direction of an

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—*cont.*

official arbiter, be taxed by him or in such manner as he may direct.

Rules for giving effect to preceding provisions of this Schedule.

3. Provision may be made by rules made by the Secretary of State, after consultation with the Reference Committee referred to in the Acquisition of Land (Assessment of Compensation) Act, 1919, for giving effect to the provisions of the two preceding paragraphs, for prescribing anything thereby required to be determined by rules, and in particular, but without prejudice to the generality of the power conferred by this paragraph,—

- (a) for the determination of any question whether land has been brought into a state such as is mentioned in sub-paragraph (2) of paragraph 1 of this Schedule, of any question whether there is any such material difference as is mentioned in sub-paragraph (3) of that paragraph, and, in a case in which there is any such difference, how the certified after-damage value ought to be adjusted;
- (b) for regulating the proceedings for the ascertainment of compensation, where the value of any land for the purposes of the ascertainment thereof is to be taken to be the certified after-damage value of the land (or that value as adjusted), so as to secure that the requisite certificate and particulars of any requisite adjustment may be rendered available for those purposes;
- (c) for fixing the period referred to in sub-paragraph (1) of paragraph 2 of this Schedule within which, where a notice to treat has been served as respects an interest in the whole of the land in a hereditament, such a notice in respect of any other interest therein must be or have been served in order to render the provisions of that paragraph applicable to the ascertainment of the compensation to be paid for the purchase of those interests, and for securing, so far as may be practicable, that all such notices intended to be given as respects interests in the whole of the land in a hereditament shall be given within the period fixed;
- (d) for specifying limits of time within which things required or authorised by paragraph 2 of this Schedule must be done, with or without power to persons designated by the rules to extend to such limits;

and references in paragraph 2 of this Schedule to rules shall be construed as references to rules made under this paragraph.
